STATE OF MICHIGAN

IN THE 52/3 JUDICIAL DISTRICT

THE PEOPLE OF THE STATE OF MICHIGAN,

Plaintiff,

v Case No. 24-007808

FOX ROBERT PARTON,

Defendant.
_____/

JURY TRIAL
VOLUME I

BEFORE THE HONORABLE NANCY TOLWIN CARNIAK, P-37601

Rochester Hills, Michigan - May 21, 2025

APPEARANCES:

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1 Rochester Hills, Michigan
2 May 21, 2025
3 At 9:07 a.m.
4 - - -
5 THE COURT: Calling the case of People versus
6 Parton, 24-7808.
7 MR. PASKULOVICH: Good morning, your Honor.
8 Kyle Paskulovich appearing on behalf of the People.
9 THE COURT: Your name, sir?
10 THE DEFENDANT: Fox Parton, your Honor.
11 THE COURT: Thank you.
12 MR. DOWNER: And Harold Downer as standby
13 counsel, your Honor.
14 THE COURT: Thank you.
15 And this is the date and time scheduled for jury
16 selection (sic). Are both sides ready to proceed?
17 MR. PASKULOVICH: Your Honor, People are
18 prepared to proceed.
19 THE COURT: Okay.
20 MR. DOWNER: And, your Honor, there is at least
21 one preliminary matter I want to discuss again with your
22 Honor.
23 THE COURT: Okay.
24 MR. DOWNER: As discussed, the last time I
25 drafted a written order to memorialize what you ordered at

1 the record at the selection. If I may approach.
2 THE COURT: Did you show it to opposing counsel?
3 MR. DOWNER: Correct. He's reviewed it and
4 approved it.
5 THE COURT: Okay. Thank you.
6 MR. DOWNER: Would you like to see it again?
7 MR. PASKULOVICH: No.
8 MR. DOWNER: It's my understanding that if
9 approved it needs to be filed down at the clerk's office,
10 but I thought it'd be more expedient to have your Honor
11 approve it first just in case there's anything you
12 disagreed with in my reflection of your order.
13 THE COURT: Okay.
14 MR. DOWNER: Thank you, your Honor.
15 THE COURT: No problem.
16 Okay. So the jury instructions --
17 MR. DOWNER: And I apologize, your Honor.
18 THE COURT: Yes.
19 MR. DOWNER: I interrupted before Mr. Parton got
20 to answer your question as to if he's ready to proceed,
21 and I believe there's a motion he wanted to discuss with
22 you.
23 THE DEFENDANT: Yes, your Honor. There's three
24 different things that I would like to discuss with you,
25 the first of which is we said that we were ready to

1 proceed with the jury selection. I believed that I was.
2 Made mention of using a video of an interview. Then I
3 received -- I did not receive until May 15th, that day
4 after the jury selection -- I have proof of it on my phone
5 -- I didn't receive until then for the first time access
6 to a OneDrive that had that interview on it as well as a
7 bunch of other evidence, which was not disclosed to me
8 during discovery.
9 So I feel like that is prejudiced to my defense.
10 I didn't really have proper time to review it, or at least
11 the defense I was able to put together is very rushed
12 because I also had work over the last six days. So I
13 would appreciate, just because of that, some more time
14 before we proceed.
15 THE COURT: Thank you.
16 Counsel?
17 MR. PASKULOVICH: Your Honor, I think there's
18 some confusion. When defendant was -- when he was being
19 represented by the Public Defender's Office, any and all
20 discovery would go directly to his attorney, not to him
21 directly. So the delay he's describing is his former
22 counsel, Mr. Downer, I believe, would be giving him
23 discovery that he'd already been in possession of. This
24 isn't the case of the prosecution disclosing things late
25 or being sneaky or hiding getting it to him. This is just

1 because defendant chose on the date of jury selection that
2 he wanted to represent himself. Then defendant, of
3 course, it's going to take -- he's not going to get the
4 discovery till then. He made that decision on the date of
5 jury selection.
6 THE DEFENDANT: Your Honor, if I may interject.
7 I had received discovery which I had been led to believe
8 was the entire discovery before that. The warrant return,
9 which was received January 7th, was --
10 THE COURT: You're telling me something
11 different. You're talking about a warrant return, not --
12 THE DEFENDANT: Okay. I'm sorry. That's
13 separate from this evidence. This evidence came in even
14 later. I was talking about before that, but this evidence
15 was disclosed to my public defender May 9th. I was only
16 made aware of the warrant return May 13th. I was ready to
17 proceed anyway. I was only made aware of this other
18 evidence for the first time after jury selection was
19 already over, and we did not discuss all of it. We had
20 only briefly said that the interview would be included,
21 and they sat on all that evidence since at least January
22 7th and didn't disclose any of it until May 9th, four months
23 later. So I don't understand how that's not prejudicial.
24 THE COURT: So you had the information since May
25 9th; is that what you're indicating?

1 THE DEFENDANT: I did not, your Honor.
2 MR. PASKULOVICH: It would have been tendered to
3 defense counsel.
4 THE COURT: On May 9th.
5 MR. DOWNER: And if I may make a record --
6 THE COURT: Yes.
7 MR. DOWNER: -- for me and your Honor.
8 Mr. Parton had requested written discovery before and I
9 provided it to him as his counsel for his review. The
10 supplemental discovery that included a warrant return was
11 received by my office on the 9th. I was able to pass that
12 on to Mr. Parton on the 13th. The audio/visual discovery
13 that includes his recorded interview, I believe we
14 received that around the 9th as well. I had not had an
15 opportunity to review it on the 13th when I sent him the
16 other things when he -- when I was withdrawn as counsel on
17 his motion. I wanted to make sure he had everything from
18 my secretary on that date, sent him a OneDrive link so he
19 could download all those videos, which, as I'm sure your
20 Honor could imagine, quite numerous. That's why it
21 couldn't just be in an e-mail. And so --
22 THE COURT: But then jury selection date he knew
23 about these -- you had provided that to him?
24 MR. DOWNER: He would not have received it
25 himself likely until after because it was something that

1 was going on, sending to his e-mail to download the
2 OneDrive link after I was withdrawn on the selection date.
3 So he would not have had the opportunity to review it
4 himself --
5 THE COURT: But did you review it? Did you
6 review it with him?
7 MR. DOWNER: I reviewed it. I don't believe I
8 had the opportunity to review it with him, to my
9 recollection.
10 THE COURT: Okay. All right.
11 MR. PASKULOVICH: In full candor, I just want to
12 correct myself. Today I did hand defendant four pieces of
13 paper. They're certificate of authenticity of domestic
14 records or regularly conducted activity, business record
15 certification from Meta. I received it yesterday. So I
16 made the representation that he had everything before, but
17 there were these four business record certifications that
18 I handed to defendant today.
19 THE COURT: Okay. That's something different
20 than the video.
21 MR. PASKULOVICH: Correct. I just made the
22 representation that he had everything, and I gave him the
23 business records for him today.
24 THE COURT: I guess I would ask counsel. Did
25 you indicate to Mr. Parton that there were videos in this

1 case and you had indicated that to him at least on a
2 minimum at jury selection when he indicated he was ready
3 to proceed?
4 MR. DOWNER: Taking a moment to consider that,
5 your Honor, because I want to make sure I'm accurate as
6 well as honest with the Court. And I believe I had, but I
7 can't with a hundred percent certainty say that I
8 absolutely did. I knew they were there, and obviously
9 there was discussion about sending it to him, and I
10 effectuated my secretary doing that while we were still in
11 court. But I cannot say with absolute certainty I said,
12 and I don't believe I said specifically, this video, this
13 video, this video has been provided to me that he needs to
14 review.
15 THE DEFENDANT: If I could speak to that, your
16 Honor.
17 THE COURT: Yes.
18 THE DEFENDANT: The only video I was aware of,
19 or the only evidence on that entire OneDrive besides the
20 updated discovery report that I was made aware of on that
21 date before I got access to it after the hearing, was that
22 interview video, and I hadn't been able to actually review
23 it at all. I just knew that it existed.
24 So in my e-mail correspondence between
25 Mr. Downer, there's no indication of him telling me about

1 any of that other evidence that was included in there. So
2 it kind of caught me off guard.
3 THE COURT: How much video is there I'd ask
4 Mr. Downer. Do you know?
5 MR. DOWNER: I can look right now, your Honor,
6 just to make sure I'm giving you completely accurate --
7 MR. PASKULOVICH: The interview with the
8 defendant is, I think, the main issue. That's about an
9 hour. Actually (inaudible) right here. That one is one
10 hour 14 minutes and 31 seconds.
11 THE COURT: And that's what we're talking about,
12 one video that's an hour and 14 minutes, okay.
13 MR. PASKULOVICH: Recorded on --
14 THE DEFENDANT: Well, there's other videos as
15 well, your Honor.
16 THE COURT: But the only video that you're
17 utilizing, right?
18 MR. PASKULOVICH: Correct.
19 THE COURT: Okay. So what other videos were
20 submitted and what were those and what were those for?
21 MR. PASKULOVICH: The other videos, there are
22 two other videos. One of them is a body-worn camera.
23 There's no interaction with defendant on that camera.
24 THE COURT: Okay.
25 MR. PASKULOVICH: It would have been victim and

1 her husband.

2 THE COURT: Okay.

3 MR. PASKULOVICH: And then one of them is a dash

4 camera from when that officer drove to the house. It

5 doesn't capture anything of substance.

6 THE COURT: Okay. And neither are going to be

7 requested. Okay.

8 MR. PASKULOVICH: Correct.

9 THE COURT: So you had time to review an hour

10 video. That's what's going to be utilized. What extra

11 time do you need and for what?

12 THE DEFENDANT: I need extra time, your Honor,

13 just because, I mean, within that time, that was five and

14 a half days to prepare. Two of those days I worked all

15 day. So I only had three and a half days to prepare.

16 I have a defense, but it's all very rushed and I

17 did not get to -- I only got to watch the video once. I

18 just -- it would be a great boom to me to have all of

19 maybe another week in order to put together a very

20 coherent defense. Also the e-mails that the prosecutor

21 had planned to use that I wasn't --

22 THE COURT: Okay. I'm going to stop you. As it

23 relates to the issue regarding unable -- that you need

24 more time to review the video, I'm going to deny that

25 request.

1 What's your next request?

2 THE DEFENDANT: Okay. My next request is to

3 maintain cross witness rights. Your Honor, after thinking

4 through the issue, I'd have to respectfully object to

5 being denied the opportunity to conduct cross-examination

6 directly on the complaining witness. Under the 6th

7 Amendment and Article 1, Section 20 of the Michigan

8 Constitution, I have the right to confront the witnesses

9 against me, including by cross-examining them directly.

10 I understand the Court may be balancing

11 interests, but there is no evidence on the record of any

12 threats towards this person or that my asking questions

13 would create a risk to the witness. This restriction

14 impairs my ability to assess the witness's answers in real

15 time, to follow up dynamically, and to challenge

16 contradictions that are central to my defense.

17 THE COURT: Okay. I'm going to deny that

18 request. You do have a right to confront the witness.

19 It's just that -- and you've listed all the questions that

20 you want to have asked and you'll also have an opportunity

21 to write down follow-up questions as it relates to that.

22 So if you need to do that, I would be happy to

23 assist in any way as it relates to any follow-up

24 questions. We can take time out to that, but Mr. Downer

25 will ask those questions directly, but they're your

1 questions, okay, and your objections, if any, whatever it
2 may be. So it's just that he is -- based upon the fact
3 that this is a stalking allegation and that there is a no
4 contact order as it relates to this, then it's going to be
5 Mr. Downer who will be asking the questions, but, again,
6 they are your questions, your follow-up questions, and I
7 will do whatever is necessary to balance your rights of
8 confrontation with that of the victim's.
9 Go ahead. What's your next issue?
10 MR. DOWNER: If I may, your Honor?
11 THE COURT: Yes.
12 MR. PASKULOVICH: Your Honor, before (inaudible)
13 just to make a record. I think the case law is very clear
14 about the right to self-representation not being absolute,
15 but there's one case in specific that talks about this
16 exact issue, and it had the defendant provide a list of
17 questions, and that is People v Daniels, 311 Mich App 257.
18 It's a 2015 case, and it talks about the courts having to
19 balance protecting a vulnerable person versus
20 confrontation, and that's what the court ultimately
21 decided. So I think that's --
22 THE COURT: Thank you for adding that.
23 THE DEFENDANT: Your Honor, if he's allowed to
24 add that, could I add my case as well?
25 THE COURT: Sure.

1 THE DEFENDANT: I mean, since he just decided to
2 add that. Maryland v Craig (1990), the U.S. Supreme Court
3 allows limited restrictions on confrontation only in cases
4 with demonstrated necessity, such as trauma to a child
5 witness, not merely discomfort or being distressed.
6 Again, the prosecutor describes this as a
7 vulnerable person. I don't really understand where that
8 comes from. She's 27 years old. She's the same age as
9 me. She's a senior engineer. I don't understand where
10 the assumption comes from that this is a vulnerable person
11 or in the absence of any threats in any of the evidence
12 alleged before I've even been convicted. I don't see what
13 the damage is to the victim, particularly when I've
14 already been allowed to cross-examine this person directly
15 in a PPO hearing. Of course she claims it was long and
16 painful. I understand that, but, I mean, our last hearing
17 was 20 minutes long. So, I mean, that doesn't actually
18 make any sense.
19 THE COURT: Thank you. My ruling is still the
20 same, but I should add that I think it might be
21 appropriate for me to indicate what's going on and that I
22 am ordering the fact that Mr. Downer will be asking the
23 questions only because there's a no contact order between
24 the parties, but the questions will be those of the
25 defendant and all follow-up questions will be his as well.

1 I think that’s important to indicate to the jury.
2 MR. DOWNER: And additionally, your Honor, to
3 flush that point out, and I had this discussion with
4 Mr. Parton already and I think it’s worth having on the
5 record, any objections he may have as to questioning and
6 also any response to Mr. Paskulovich’s objections to the
7 questions, it's my belief that it’s his responsibility to
8 respond and argue against any of Ms. Paskulovich’s
9 objections and my role.
10 THE COURT: Absolutely. Yes.
11 MR. DOWNER: And Mr. Parton understands that,
12 but I think it’s worth being clear on the record that fact
13 as well, and I appreciate the opportunity to make that
14 record.
15 THE COURT: Thank you. Basically you’re just a
16 reader.
17 MR. DOWNER: Correct, your Honor.
18 THE COURT: Okay. That’s counsel’s role. He’s
19 reading the questions. Everything else is your
20 responsibility, if that clarifies.
21 What’s your next issue?
22 THE DEFENDANT: This is actually a carryover
23 from the motion in limine I attempted to submit last time
24 before trial started. I was able to review it briefly
25 with you, but I wasn’t able to formally submit it, a

1 motion to suppress digital evidence which succeeds the
2 warrant scope. There is evidence that came back in that
3 warrant that exceeded its scope, didn't have anything to
4 do with the accounts requested.
5 THE COURT: What specifically are you talking
6 about? What digital evidence and what are you talking
7 about?
8 THE DEFENDANT: There's not between any
9 accounts, any of my accounts that were -- are linked to
10 me, but between these fake accounts and I think three
11 other individuals not named in the warrants that shows
12 communications which are --
13 THE COURT: Specifically show the documents to
14 opposing counsel. I don't know if he's introducing them,
15 what you're talking about.
16 MR. PASKULOVICH: Your Honor, I've seen these.
17 These are business records from Meta. I believe
18 defendant, based on what he told me in the hallway, he's
19 trying to argue it should be suppressed because certain
20 messages that are screenshots of aren't in the records.
21 THE DEFENDANT: I'm sorry. That's not what we
22 were discussing. We're discussing that there's evidence
23 that -- or there's messages that came back which have
24 nothing to do with the way the warrant was written. The
25 warrant was written, any communications between these

1 accounts, Fox Parton and Fox Parton -- there's two
2 different Fox Parton accounts -- and then the three other
3 accounts alleged to have been operated by me, and Brianna
4 Walters' accounts.
5 But there's some messages that are returned that
6 are between some of these accounts and other accounts that
7 aren't Brianna Walters and they --
8 THE COURT: Okay. I don't think --
9 THE DEFENDANT: -- they're not relevant to the
10 charge.
11 THE COURT: Okay. So --
12 THE DEFENDANT: So they're outside of the scope.
13 THE COURT: Is that the Meta?
14 MR. PASKULOVICH: Yes. To be perfectly clear,
15 the People have no intention of introducing any of the
16 conversations or messages that do not involve the victim
17 in this case.
18 THE COURT: Okay. All right. So that --
19 MR. PASKULOVICH: And I'd even be fine redacting
20 it so the jury can't see those messages.
21 THE COURT: Okay.
22 THE DEFENDANT: That's exactly what I'm talking
23 about.
24 THE COURT: Okay. All right. Then that motion
25 is granted, and if you could redact anything as it relates

1 to conversations that are not directly between the
2 complainant and the defendant, that'd be great.
3 MR. PASKULOVICH: Okay. Your Honor, I will do
4 that. But I do have some (inaudible) place on the record
5 while we're getting everything all flushed out. In
6 speaking with the defendant in the hallway in Mr. Downer's
7 presence, he has intention on bringing up a lot of issues
8 to the jury today about the search warrant exceeding
9 scope, that being (inaudible) for the jury, mediation
10 being mentioned. That's going to be closing arguments.
11 I think that there is still a disconnect as to
12 the Rules of Evidence being the prevailing thing in this
13 courtroom that we have to follow, and I have concerns
14 about what he's going to say to the jury with that, and I
15 just want to make sure very, very good waiver and -- that
16 require about the dangers of self-representation. And I
17 just, for purposes of this record protecting from appeal,
18 I feel Friday may not have gone as into it. I think today
19 it would be good for the Court to really emphasize and go
20 through that with the defendant again. I have concerns
21 that he is not necessarily -- I'm not saying he's not
22 aware of it. He think that he's going to be able to do
23 things in the this trial that he's not is what he told me
24 in the hallway.
25 THE COURT: Okay.

1 MR. PASKULOVICH: I guess it should be clear
2 beforehand that he's not going to be able to just talk
3 about any argument he wants. It's going to have to be
4 admissible. There are Rules of Evidence as foundation,
5 things of that sort.
6 THE COURT: That is true as it relates to any
7 miscellaneous matters or matters that should have been
8 flushed out prior, for example, search warrant issues.
9 That's all to be determined by the Court, the judge, not
10 the jury, things like that. Mediation, that's not an
11 appropriate thing to talk about, and I will stop you from
12 talking about any of those things and out of the purview
13 of the jury if you do discuss that. Do you understand?
14 THE DEFENDANT: I understand, your Honor. I
15 guess I'm trying to wrap my head -- I take issue with --
16 and it's not, like, my closing arguments revolve around
17 mediation versus a trial, but this was something that I
18 intended to mention as an important advocacy, and I think
19 it does kind of support a not guilty verdict under the
20 stalking -- the statute. I feel like it is kind of
21 relevant to the discussion.
22 THE COURT: Mediation?
23 THE DEFENDANT: The benefits of a mediation.
24 THE COURT: Okay.
25 THE DEFENDANT: Or an attempt of a mediation.

1 THE COURT: Okay.

2 THE DEFENDANT: Before rushing into a criminal

3 trial. But this is another point that -- it's because I

4 am pro se and I've never had an issue with the law before.

5 This is my first time doing this. I learn new things each

6 time I talk to my limited counsel.

7 THE COURT: Of course. Of course. That's why

8 we ask you are you sure. This is a crazy thing to do, to

9 dismiss your attorney on the day of jury selection.

10 THE DEFENDANT: The only reason I did that is

11 because he did not want to submit my motion in limine,

12 which wasn't formally submitted anyway, but, of course,

13 now we finally got that suppression, which, you know, I

14 wanted to get out. But, I mean, this is just another

15 reason that -- if I did have, like, one more week, I would

16 be able to prepare a defense that's far more within the

17 confines of the procedures of the court. I'd just have

18 better time to prepare.

19 THE COURT: Sir, you indicated you were ready to

20 proceed for jury selection on jury selection date. We

21 spent hours with picking a jury as well as listening to

22 your motions. We have jurors that have taken a day off of

23 work, okay? They all have things, too, to do, okay? It's

24 up to you to be prepared for today's jury. I am sorry

25 that you're not prepared or that you feel like you need

1 more time to prepare. That was on you, quite frankly.
2 I've indicated to you, and I think Mr. Downer
3 indicated as well, that we were recommending that you not
4 represent yourself, but you were insistent upon that. I'm
5 assuming that you're still insistent upon that.
6 THE DEFENDANT: I don't know if there is a way
7 to go back to having a lawyer.
8 THE COURT: And I think that --
9 THE DEFENDANT: I thought -- but the only reason
10 I had to move to limited counsel was only because of that
11 motion, your Honor. You stated that -- I'm sorry. I lost
12 my train of thought. It's just I wasn't aware of all that
13 additional evidence besides the interview that was in that
14 OneDrive when I agreed to proceed to the jury selection.
15 I didn't even remember that the video was an hour and 15
16 minutes long at the time.
17 There's metadata documentation --
18 THE COURT: Okay. I already made a ruling as it
19 relates to that.
20 Is there something additional that you believe
21 should be indicated to -- well, anything additional that
22 you're indicating I should advise the defendant of?
23 MR. PASKULOVICH: Your Honor, lawyers have legal
24 training. There's evidentiary objections. Without having
25 any sort of legal training, it can put him at a

1 disadvantage.

2 THE COURT: So are you suggesting that I give

3 him that opportunity to have an attorney again today?

4 MR. PASKULOVICH: There's case law that for

5 every single proceeding there needs to be another waiver.

6 THE COURT: Okay.

7 MR. PASKULOVICH: And that's --

8 THE COURT: And then, Mr. Downer, what is your

9 position as it relates to that?

10 MR. DOWNER: I'm here, your Honor. I was his

11 attorney before, and if I'm reappointed, unless there's

12 some issue I'm not aware of, I've no issue proceeding, my

13 only concern being reappointed, to be candid with the

14 Court.

15 Mr. Parton is correct. The reason he asked me

16 -- asked for my withdrawal in the first place was

17 disagreements over trial strategy, which is my realm as an

18 attorney --

19 THE COURT: Right.

20 MR. DOWNER: -- and what motions to be filed and

21 what to be argued and not, and I don't know that that

22 breach of the attorney-client relationship that existed, I

23 don't know that -- I would expect that issue to reappear

24 during trial and have to be addressed.

25 THE COURT: Okay. Sir, you do have a right to

1 represent yourself but you also have a right to an
2 attorney, and Mr. Downer can continue as your attorney if
3 you choose to do so. And we'll check with MIDC to make
4 sure that is available and appropriate -- it sounds like
5 it is -- if you wish to proceed with an attorney, and I
6 would strongly encourage that. As you've indicated, there
7 are things and nuances. You don't have any legal
8 training. I've indicated to you in the past how important
9 it is that I thought you have an attorney.
10 And also it's important that the jury gets the
11 full picture. We know that the People are going to get
12 their facts in because they know how to do that. They
13 know the Rules of Evidence and the Michigan Court Rules.
14 I have to rule -- I've explained this to you before. I
15 have to rule according to the law, not whether I want that
16 evidence to get in, and I think the jury should hear it
17 because I think the jury needs to hear both sides in order
18 to make a fair determination. But my concern continues to
19 be that if you represent yourself that maybe all the
20 evidence won't be allowed in that is legally admissible.
21 But if you have counsel, that will be very helpful in that
22 regard. You still have, of course, a say in how this case
23 goes. You ultimately are the client, but you would have
24 to listen to your attorney and take advice from.
25 Ultimately, however, you are the individual charged with

1 the crime.

2 Knowing all that, would you like Mr. Downer to

3 be reappointed for your counsel?

4 THE DEFENDANT: As a compromise to adjournment,

5 your Honor, would you be conducive towards a brief recess

6 to discuss with limited counsel?

7 THE COURT: What do you mean?

8 THE DEFENDANT: Well, for him to -- he came in

9 here under the impression that he was limited counsel.

10 THE COURT: Yes.

11 THE DEFENDANT: If he's appointed as my attorney

12 today in order to proceed, I mean, I would want him to

13 review what work I've done and see how it coalesces with

14 his strategy so that we could move forward cohesively --

15 THE COURT: Okay.

16 THE DEFENDANT: -- as opposed to just -- I mean,

17 is he really prepared if he gets appointed as my lawyer on

18 the spot today when he came here today under the

19 impression that he was going to be limited counsel? I

20 would like for him to have more time.

21 THE COURT: He's indicating he can proceed

22 today.

23 MR. DOWNER: If I may, your Honor --

24 THE COURT: Yes.

25 MR. DOWNER: -- to that point. That highlights

1 my concern in that the disagreement in the strategy and
2 strategies Mr. Parton wants to be pursued.
3 THE COURT: Thank you.
4 You need to listen to your attorney as it
5 relates to things that he indicates are not admissible,
6 okay, for example, bringing up issues regarding mediation
7 or asking questions about that or pursuing that area. He
8 knows the law, and I'm going to stop you from doing that.
9 So there's certain things that he's going to tell you, no,
10 I cannot ask those questions, or, no, those are not
11 admissible, certain things. So you do need to listen to
12 your attorney in regard to legal matters; do you
13 understand?
14 THE DEFENDANT: I understand, your Honor.
15 THE COURT: So if there's specific questions
16 that you want to ask and you think are appropriate, he may
17 tell you, I cannot ask that question, or, yes, I can
18 pursue that avenue. If you do have an attorney, you do
19 have to consider all of that, and if you can't do that, if
20 you're just insisting on a certain path that the attorney
21 says I cannot pursue, then that's problematic, okay?
22 So can you follow that? Can you listen to the
23 advice of your attorney as it relates to legal issues, the
24 admissibility of issues, and things like that?
25 THE DEFENDANT: Well, again, your Honor, I feel

1 like the best --

2 THE COURT: Yes or no?

3 THE DEFENDANT: I'm going to say no, your Honor.

4 I feel like the best compromise would be --

5 THE COURT: There's no compromise. I don't

6 understand what you're saying. Today is the date for jury

7 selection -- or jury trial. We had a jury selection. You

8 decided not to have an attorney as it relates to this

9 matter. Now counsel's offering to be your counsel. I

10 think it's a great idea again, and if you -- I don't even

11 know how to explain this any more to you. I feel like

12 I've been doing this over and over.

13 You take the risk if you don't have an attorney

14 that you may not get evidence in, not only about things

15 that are not admissible but things that normally would be

16 admissible that should be in but you don't know how to

17 enter them into evidence. You've indicated that you

18 didn't understand certain things and you said you're a

19 novice. This is my concern, not about issues that you are

20 worried about getting in that are not admissible, again,

21 issues that are admissible that you don't know how to get

22 in. You will not have a fair trial potentially if that's

23 the case and I rule against you. Do you understand that?

24 THE DEFENDANT: I understand, your Honor.

25 THE COURT: And knowing that is it still your

1 desire not to have Mr. Downer as your attorney?
2 THE DEFENDANT: It's just I would like a minute
3 to discuss it with him.
4 THE COURT: What are --
5 THE DEFENDANT: In private in order -- well,
6 because you -- I've been told that, okay, discussing
7 mediation in closing statements is inappropriate. Okay.
8 Fair enough. That's -- in order to evaluate whether I
9 should just drop all the stuff that I've done, I mean, the
10 hours that I've spent on this and allow Mr. Downer to
11 represent me instead, I would like a moment to go talk to
12 him about all of it and see if I proceeded with limited,
13 what does this look like versus if I let him take over for
14 me.
15 THE COURT: Okay.
16 THE DEFENDANT: Because I didn't have an
17 opportunity to talk to him at all over the phone or
18 anything before this as my limited counsel because the
19 timeline was so crunched. We were able to talk briefly in
20 the hallway, but prosecution was there as well and we were
21 talking about all kinds of different stuff. It wasn't
22 really focused on my defense as I would raise to him and
23 ask him questions about. So I haven't actually had the
24 opportunity to ask him as my limited counsel even what he
25 thinks about --

1 THE COURT: Yes. I will give you ten minutes.
2 THE DEFENDANT: Okay. I appreciate you.
3 MR. DOWNER: And, your Honor, before we go off
4 the record on this, I want to confirm because I suspect
5 it's the case. If I'm reappointed and Mr. Parton has a
6 change of heart and I renew my withdrawal again, I would
7 presume your Honor would deny that request? I think it's
8 worth Mr. Parton knowing if that is the case.
9 THE COURT: Deny the request for --
10 MR. DOWNER: To have me withdraw again if he
11 asked to have me withdraw again.
12 THE COURT: Oh, I see. Yes. Yes.
13 And just for the record, Ms. Loftin is here,
14 too, and she's indicated that it is appropriate and he can
15 be reappointed.
16 Is that correct?
17 MS. LOFTIN: That's accurate, your Honor.
18 THE COURT: Okay. Just for the record. Thank
19 you.
20 All right.
21 MR. DOWNER: And, your Honor, you confirmed that
22 you would --
23 THE COURT: Yes. Right.
24 MR. DOWNER: -- not allow any future withdrawal
25 if he --

1 THE COURT: Yes, that's correct.

2 MR. DOWNER: -- changed his mind.

3 THE DEFENDANT: Your Honor, is this coffee for

4 anyone?

5 THE COURT: It's water, and it's for you.

6 THE DEFENDANT: That's even better. I think I

7 got my peppermint tea here.

8 (At 9:38 a.m., matter passed.)

9 (At 10:20 a.m., case recalled.)

10 THE COURT: Recalling Parton, 24-7808.

11 MR. PASKULOVICH: Good morning. Kyle

12 Paskulovich appearing on behalf of the People.

13 THE COURT: Your name.

14 THE DEFENDANT: Fox Parton, your Honor.

15 THE COURT: And you've had quite a bit of time

16 to discuss with counsel the fact whether you want him to

17 continue as your counsel in chief and assist you or you

18 just needed him as standby counsel?

19 THE DEFENDANT: We've discussed it, your Honor,

20 and we discussed both options very deliberately and we

21 came to the conclusion ultimately that I would represent

22 myself.

23 THE COURT: Okay. Not we came to the

24 conclusion. What is your conclusion?

25 THE DEFENDANT: I came to the conclusion that I

1 would continue to represent myself with him as my limited
2 counsel.
3 THE COURT: Okay. And you understand -- is
4 there anything you wanted to add to that, Counsel?
5 MR. DOWNER: No, your Honor. We did discuss it.
6 We had an opportunity to discuss the different roles and
7 what each option would look like, and that is the choice
8 he came to.
9 THE COURT: Okay. And the record should reflect
10 -- I don't know how long. How long have we been -- took a
11 break?
12 Okay. So, I mean, there was over almost 40
13 minutes of discussions with counsel, so obviously plenty
14 of time for you to weigh all your options as it relates to
15 that. I just want to reiterate one more time that you
16 represent yourself at your own peril, and I've already
17 explained my concerns to you regarding that and everything
18 that goes along with representing yourself. Do you
19 understand?
20 THE DEFENDANT: I understand, your Honor.
21 THE COURT: Knowing all of that, is it still
22 your desire to waive your right to an attorney and proceed
23 on your own?
24 THE DEFENDANT: It is, your Honor.
25 THE COURT: Okay. Anything further in that

1 regard, I guess, I'd ask the People?

2 MR. PASKULOVICH: Your Honor, I guess the only

3 other thing worth including is since we have standby

4 counsel here, defense should be advised as well that

5 there's not an absolute right to self-representation. So

6 if he doesn't follow the rules required by the Court --

7 THE COURT: Oh, yes.

8 MR. PASKULOVICH: -- then there's a possibility

9 still he may not have that right to represent himself.

10 THE COURT: Thank you.

11 Just so you understand, you need to follow all

12 the rules of the court and jury and just as if you were an

13 attorney. If there are any violations, I will admonish

14 you or let you know, and we will go -- do you have any

15 questions about that? Basically you need to follow all

16 the rules as an attorney would follow all the rules. Do

17 you understand?

18 THE DEFENDANT: Yes, your Honor.

19 THE COURT: Okay.

20 MR. DOWNER: And there may be one more thing

21 just to address or we can address it at the close of the

22 prosecutor's case. But if Mr. Parton chooses to exercise

23 his right to testify, it would make sense to me to allow

24 him to testify in the narrative --

25 THE COURT: Yes.

1 MR. DOWNER: -- because he can't ask himself
2 questions.
3 THE COURT: Yeah. If it gets to that point, I
4 think that's appropriate.
5 MR. DOWNER: Thank you, Judge.
6 THE DEFENDANT: Your Honor, I had just one other
7 question. I apologize. Just before I came in here, my
8 mom's trying to call me and I didn't get a chance to talk
9 to her before this. I just want to know if I were
10 sentenced and bond were revoked if I were convicted if I'd
11 have a chance to call her.
12 THE COURT: Sir, I think this was explained to
13 you. I don't know that jail was necessarily part of this
14 if you're found guilty or you plead guilty.
15 THE DEFENDANT: It's just --
16 THE COURT: I want to place you --
17 THE DEFENDANT: -- I don't know what would
18 happen, your Honor. It's just why I was asking. By my
19 public -- he didn't mean to, but he kind of scared me when
20 he said, you know, if you are convicted today, your bond
21 can be revoked immediately.
22 THE COURT: It is possible if something comes
23 out that I don't know about. Sir, the main thing is we
24 want you to be placed on probation. That's the issue,
25 okay?

1 THE DEFENDANT: I understand, your Honor.
2 THE COURT: And you need to be placed on
3 probation as it relates to that if you're convicted, okay?
4 THE DEFENDANT: If I'm convicted, your Honor. I
5 understand. I just wanted to clarify that because I
6 started getting shook up when she started calling me.
7 THE COURT: Okay.
8 THE DEFENDANT: So I apologize.
9 MR. PASKULOVICH: Just to reiterate, the People
10 have no objection if he were to avoid that and plead to no
11 upfront jail --
12 THE COURT: Jail time?
13 MR. PASKULOVICH: -- remaining on bond until
14 sentencing.
15 THE COURT: I'm assuming that you want to
16 proceed with the trial and not plead to anything today; is
17 that correct, sir?
18 THE DEFENDANT: That's correct, your Honor. I
19 continue to plead not guilty.
20 THE COURT: Okay.
21 MR. PASKULOVICH: Your Honor, the only other
22 thing would be the jury instruction for
23 self-representation.
24 THE COURT: Yes. I think we did include -- we
25 added that in. Did you add that in the initial

1 instructions? You did indicate that, yeah.

2 MR. PASKULOVICH: I wasn't sure.

3 THE COURT: I know you showed it to him, yes,

4 and we're adding that in there.

5 Okay. All right. With that do you want to see

6 if they're ready on that other case real quick?

7 MR. PASKULOVICH: I guess procedurally ask

8 defendant -- if he doesn't want to answer -- or would not

9 -- are you going to stipulate to admission of exhibits, or

10 would you like each exhibit gone through the process of

11 authentication? Sometimes I'd be willing to stipulate to

12 your exhibits if you let me see them, but you have the

13 opportunity to view things that I plan on introducing. If

14 (inaudible) just let me know ahead of time to speed it up,

15 speed things up.

16 MR. DOWNER: And, if I may, stipulation means

17 that I'm okay with it coming in; he does not have to lay a

18 foundation.

19 THE DEFENDANT: As in I wouldn't try to object

20 at all.

21 MR. DOWNER: Correct.

22 THE DEFENDANT: Gotcha. If you'd like to let

23 me --

24 THE COURT: You want to look at them?

25 MR. PASKULOVICH: Sure.

1 THE COURT: Okay. The ones that you stipulate
2 to why don't you give back to him?
3 (At 10:27 a.m., matter passed.)
4 (At 10:33 a.m., case recalled.)
5 THE COURT: All right. Recalling Parton,
6 24-7808.
7 MR. PASKULOVICH: There's an agreement, your
8 Honor, about getting rid of any -- or redacting any
9 messages that didn't include --
10 THE COURT: Yeah.
11 MR. PASKULOVICH: -- defendant and victim.
12 There's one that says Fox Parton. Defendant says it's not
13 him.
14 THE COURT: Oh, that's a different issue.
15 THE DEFENDANT: Well, it's a different account
16 ID from the account IDs that were listed in the warrant.
17 So I understand it's the same name, but going off of the
18 account IDs --
19 THE COURT: You can ask questions about that.
20 (At 10:36 a.m., parties have off-the-record
21 discussions about exhibits.)
22 Okay. I'm going to stop you now. This jury has
23 been waiting for two hours now, okay? You're talking in
24 circles a little bit. The attorney --
25 THE DEFENDANT: Are those --

1 THE COURT: Stop, please. The attorney's
2 indicating you either can stipulate to that document, the
3 entire document, or he's not going to admit it at all. If
4 you want -- what is your answer as it relates to that? Do
5 you want the entire document stipulated to, or do you not
6 want that admitted at all through the People?
7 THE DEFENDANT: I don't think that I was talking
8 about stipulating to that at all. We've gotten onto
9 different discussion of redaction.
10 THE COURT: Okay. So that's not stipulated to.
11 You have --
12 MR. PASKULOVICH: Show me what's not stipulated
13 to.
14 THE DEFENDANT: Well, before we get to that I
15 was trying to point out to you the parts that need to be
16 redacted. That's what I was trying to do so that we could
17 be ready for the case, but that motion was approved.
18 There's some information that should be redacted because
19 it's outside of the scope of the warrant. That's what I
20 was --
21 MR. PASKULOVICH: So the first step is admitting
22 that. So we need to look at the stipulated stuff 'cause
23 that's stuff that will be admitted into evidence.
24 THE DEFENDANT: Because there were only, like,
25 three messages that should have been admitted.

1 THE COURT: Okay. Stop. The -- excuse me. Can
2 you look at me for a moment? You need to -- the issue is
3 this, okay? You need to -- if you want to agree to
4 anything that's being admitted, that's what we're here
5 for. We've been looking at this for I don't know how many
6 minutes now. Do you want to agree to anything?
7 THE DEFENDANT: I did give him the pile of
8 things that I was stipulating to --
9 THE COURT: Okay.
10 THE DEFENDANT: -- your Honor. Then we got --
11 so I already stipulated to --
12 THE COURT: Okay. Okay.
13 THE DEFENDANT: -- what I stipulated to.
14 THE COURT: Okay. Wonderful. So what numbers
15 are we stipulating to?
16 MR. PASKULOVICH: So just to confirm because
17 you've moved stuff around.
18 THE DEFENDANT: Now the piles have gotten mixed
19 up because we were talking about the other thing.
20 I'm stipulating to these that say Fox Parton.
21 Stipulating to both of those returns for the Fox Parton
22 accounts.
23 THE COURT: Okay. Great.
24 THE DEFENDANT: I saw a typo where the
25 identifier is incorrect on all these -- authenticities. I

1 don’t stipulate to any of this.

2 THE COURT: Okay. So what numbers are we

3 stipulating to, and then we’re going to call the jury in.

4 MR. PASKULOVICH: Sorry, I got out of order now

5 for my numbers I started. So we can do People’s 1, 2, and

6 3.

7 THE COURT: One, two and three.

8 Mr. Parton --

9 MR. PASKULOVICH: I can get them out of order.

10 THE COURT: Okay. Mr. Parton, is that correct?

11 You're stipulating to Defense Exhibits -- or Plaintiff’s

12 Exhibits 1, 2, and 3?

13 THE DEFENDANT: That sounds correct, your Honor.

14 THE COURT: Okay. Great. Anything else?

15 MR. PASKULOVICH: So the only other issue is

16 would it be possible for purposes of redaction to send

17 your clerk a copy of the print just to be blacked out on

18 Adobe?

19 THE COURT: Yes.

20 MR. PASKULOVICH: All right. I have that saved

21 and will send it right now.

22 THE DEFENDANT: So I starred this and I starred

23 this. Those are the only other two that should be

24 redacted. It was just those three -- well, four if you

25 (inaudible) Fox, but if you don’t want to redact it

1 (inaudible).

2 THE COURT: Mr. Parton, are you looking at

3 Exhibits 1, 2, and 3 still, or are you looking --

4 THE DEFENDANT: No, your Honor. He has them in

5 his hands.

6 THE COURT: Okay. Are you also stipulating to

7 other exhibits once they're redacted?

8 MR. PASKULOVICH: So I believe four. So this is

9 four and five, correct? Did you want to stipulate to

10 these?

11 MR. DOWNER: I believe this one he did, but he

12 believed with the two chats redacted.

13 MR. PASKULOVICH: I'm fine with redacting it.

14 MR. DOWNER: And I believe the same for this one

15 as well?

16 THE DEFENDANT: Yeah. I stipulate to everything

17 that came back from the return.

18 THE COURT: So you're also stipulating to

19 Exhibits no. 4 and 5, correct?

20 THE DEFENDANT: Correct. So there was one more.

21 I guess that would be six.

22 THE COURT: Four, five, and six you're

23 stipulating to?

24 THE DEFENDANT: What I'm saying is I can

25 stipulate to as long as it gets that redaction that I was

1 talking about.

2 THE COURT: Okay. So we're going to go through

3 that and make sure that you're in agreement of what's to

4 be redacted. That sounds like -- makes sense.

5 (At 10:44 a.m., parties have off-the-record

6 discussions about exhibits.)

7 THE DEFENDANT: Your Honor, I believe we've got

8 all the stipulations and redactions sorted. While he's

9 working on that right now --

10 MR. PASKULOVICH: Just waiting for the computer

11 to comply with the redactions.

12 THE COURT: Okay.

13 THE DEFENDANT: All right if I run to the

14 restroom while this --

15 THE COURT: Yes, absolutely. No problem.

16 THE DEFENDANT: Thank you, your Honor.

17 (At 10:46 a.m., matter passed.)

18 (At 10:48 a.m., case recalled.)

19 THE COURT: Okay. The record should reflect

20 that Mr. Parton is back in, and are both sides -- oh. Are

21 we still waiting on the redactions?

22 MR. PASKULOVICH: Yes.

23 THE COURT: You want to wait for that?

24 MR. PASKULOVICH: I'm sending it to your clerk

25 now. I'm just having to go through it manually to do it.

1 THE COURT: Okay.

2 MR. PASKULOVICH: My computer for some reason

3 keeps freezing. I think it may just be easier to rip the

4 pages out. You're okay with that, Mr. Parton?

5 THE DEFENDANT: If they can be ripped out in a

6 way that, you know, preserves the rest of that I think --

7 MR. PASKULOVICH: I'm fine with that.

8 THE DEFENDANT: -- that'd be great.

9 (At 10:53 a.m., parties have off-the-record

10 discussions about exhibits.)

11 THE COURT: Okay. Are we ready?

12 MR. PASKULOVICH: Defendant's just crossing out

13 the last one.

14 THE COURT: Yes, one through six has been

15 admitted, or will be admitted or stipulated to. They're

16 being stipulated to.

17 MR. PASKULOVICH: Your Honor, I believe it's

18 only one through five.

19 THE COURT: Oh, one through five? Okay.

20 (At 10:56 a.m., People's Exhibit nos. 1 through

21 5 admitted.)

22 THE COURT: I think defendant said six.

23 MR. PASKULOVICH: Yeah, there's only five.

24 THE COURT: Okay.

25 MR. PASKULOVICH: And then, I guess, maybe we

1 can tell the jury we've done some --

2 THE COURT: Scribbling?

3 MR. PASKULOVICH: -- impromptu redactions?

4 THE COURT: Okay.

5 THE DEFENDANT: Where's the other page that

6 leads into that? Did you just rip it out or are you --

7 MR. PASKULOVICH: Yeah. I gave it to you, six

8 to eight.

9 THE DEFENDANT: Oh, gotcha.

10 THE COURT: Okay. All right. With that are we

11 ready?

12 MR. PASKULOVICH: Yes.

13 THE COURT: Okay. All right. We'll bring the

14 jury in.

15 MR. PASKULOVICH: I'm just going to go grab my

16 officer in charge.

17 THE COURT: Okay. What's that? What is --

18 MR. PASKULOVICH: I can wait. Should I wait to

19 get the officer in charge?

20 THE COURT: No, he can come in.

21 MR. PASKULOVICH: Okay.

22 COURT CLERK: All rise for the jury.

23 (At 10:58 a.m., jurors enter courtroom.)

24 THE COURT: You can be seated. We're standing

25 for you. Please be seated.

1 First of all, I just wanted to apologize. I
2 know I told everyone to be here at 8:30, and, as you know,
3 we've been working here since 8:30, and I think now we're
4 ready to proceed hopefully in an efficient and effective
5 manner so that we can hear the trial.
6 So first things first. I know you have a packet
7 in front of you. That's so you can read along if you'd
8 like to do so. The first thing I'm going to do is swear
9 you in to perform your duties to try the case justly and
10 reach a true verdict. If your religious beliefs do not
11 permit you to take an oath, you may instead affirm to try
12 the case justly and return a true verdict. So with that
13 I'm going to have you please stand and raise your right
14 hand.
15 Do each of you solemnly swear or affirm in this
16 action now before the Court you will justly decide the
17 questions submitted to you, that unless you are discharged
18 by the Court from further deliberation, you will render a
19 true verdict and that you will render your verdict only on
20 the evidence introduced and in accordance with the
21 instructions of the Court, so help you God? If so, answer
22 I do.
23 JURORS: I do.
24 THE COURT: Thank you. Please be seated.
25 As I just told you, you have a copy of the

1 written instructions that I'm about to read to you. You
2 can refer to them any time during the trial. Since no one
3 can predict the course of a trial, these instructions may
4 change at the end of the trial, and at the close of the
5 trial I'm going to provide you a copy of the written
6 instructions for use during your deliberations.
7 First I'm going to explain the legal principles
8 that you'll need to know and the procedure that we follow
9 as a trial. The defendant is charged with stalking. To
10 establish this charge, the prosecutor must prove each of
11 the following elements beyond a reasonable doubt, first,
12 the defendant committed two or more willful, separate, and
13 noncontinuous acts of unconsented contact with Brianna
14 Walters. Unconsented contact means that the defendant
15 initiated or continued contact with Brianna Walters
16 without her consent and includes following or appearing
17 within sight of Brianna Walters, approaching Brianna
18 Walters in public or in private property, property owned,
19 leased, or occupied by Brianna Walters, contacting Brianna
20 Walters by telephone, sending an electronic communication
21 or mail to Brianna Walters, placing an object or
22 delivering an object to property owned, leased, or
23 occupied by Brianna Walters; second, that the contact
24 would cause a reasonable individual to suffer emotional
25 distress; third, that the contact caused Brianna Walters

1 to suffer emotional distress; fourth, that the contact
2 would cause a reasonable individual to feel terrorized,
3 frightened, intimidated, threatened, harassed, or
4 molested; and, fifth, that the contact caused Brianna
5 Walters to feel terrorized, frightened, intimidated,
6 threatened, harassed, or molested.
7 A person accused of a crime is presumed to be
8 innocent. This means that you must start with the
9 presumption that the defendant is innocent. This
10 presumption continues throughout the trial and entitles
11 the defendant to a verdict of not guilty unless you are
12 satisfied beyond a reasonable doubt that he is guilty.
13 Every crime is made up of parts called elements.
14 The prosecutor must prove each of the elements beyond a
15 reasonable doubt. The defendant is not required to prove
16 his innocence or to do anything. If you find that the
17 prosecutor has not proven every element beyond a
18 reasonable doubt, then you must find the defendant not
19 guilty.
20 Proof beyond a reasonable doubt is proof that
21 leaves you firmly convinced of the defendant's guilt. A
22 reasonable doubt is a fair, honest doubt growing out of
23 the evidence or lack of evidence. It is not merely an
24 imaginary or possible doubt but a doubt based upon reason
25 and common sense. A reasonable doubt is just that, a

1 doubt that is reasonable after careful and considered
2 examination of the facts and circumstances of the case.
3 A trial follows this procedure. First, the
4 prosecutor makes an opening statement where the prosecutor
5 presents theories about the case. The defendant's lawyer
6 does not -- or the defendant, I should say, does not have
7 to make an opening statement, but the defendant may make
8 an opening statement after the prosecutor makes an opening
9 statement or the defendant may wait until later. These
10 statements are not evidence. They are only meant to help
11 you understand how each side views the case.
12 Next the prosecutor presents evidence. The
13 prosecutor may call witnesses to testify and may show you
14 exhibits like documents or objects. The defendant has the
15 right to cross-examine the prosecutor's witnesses.
16 After the prosecutor has presented all the
17 prosecutor's evidence, the defendant may also offer
18 evidence but does not have to. By law the defendant does
19 not have to prove his innocence or produce any evidence.
20 If defense does call any witnesses, the prosecutor has the
21 right to cross-examine them. The prosecutor may also call
22 witnesses to contradict the testimony of the defense
23 witnesses.
24 After all the evidence has been presented, the
25 prosecution and the defense will make their closing

1 arguments. Like the opening statements, these are not
2 evidence. They're only meant to help you understand the
3 evidence and the way each side sees the case. You must
4 base your verdict only on the evidence.
5 In this case the defendant, Fox Parton, is
6 representing himself. This fact should not affect your
7 decision in any way. The defendant has the right to
8 represent himself and he has chosen to exercise that
9 right. A lawyer, Harold Downer, is present if defendant
10 wishes to consult with him.
11 My responsibilities as the judge in this trial
12 are to make sure that the trial is run fairly and
13 efficiently, to make decisions about evidence, and to
14 instruct you about the law that applies to this case. You
15 must take the law as I give it to you. Nothing I say is
16 meant to reflect my own opinion about the facts of this
17 case. As jurors, you are the only ones who will decide
18 this case. Your responsibility as jurors is to decide
19 what the facts of this case are. This is your job and no
20 one else's. You must think about all the evidence and all
21 the testimony and then decide what each piece of evidence
22 means and how important you think it is. This includes
23 how much you believe what each of the witnesses said.
24 What you decide about the facts of the case are final.
25 Part of your job in deciding what the facts of

1 the case are is to decide which witnesses you believe and
2 how important you think that their testimony is. You do
3 not have to accept or reject everything a witness says.
4 You are free to believe all, none, or part of any person's
5 testimony. In deciding which testimony you believe, you
6 should rely on your own common sense and everyday
7 experience. However, in deciding whether you believe a
8 person's testimony, you must set aside any bias or
9 prejudice you may have based upon the witness's race,
10 national origin, ethnicity, gender, gender identity,
11 sexual orientation, religion, age, or socioeconomic
12 status.
13 There are no fixed set of rules whether you
14 believe a witness, but it may help you to think about
15 these questions. For example, was the witness able to see
16 or hear clearly? How long was the witness watching or
17 listening? Was anything else going on that might have
18 distracted the witness? Does the witness seem to have a
19 good memory? How does the witness look and act while
20 testifying? Does the witness seem to be making an honest
21 effort to tell the truth, or does the witness seem to
22 evade the questions or even argue with the lawyers? Does
23 the witness's age or maturity affect how you judge his or
24 her testimony? Does the witness have any bias or
25 prejudice or any personal interest in how this case is to

1 be decided? Have there been any promises, threats,
2 suggestions, or other influences that affect how the
3 witness testifies? In general, does the witness have any
4 special reason to tell the truth or any special reason to
5 lie, and, all in all, how reasonable does the witness's
6 testimony seem when you think about all the other evidence
7 in the case?
8 When it's time for you to decide the case,
9 you're only to consider the evidence that was admitted in
10 the case. Evidence includes only the sworn testimony of
11 the witnesses, the exhibits that are admitted into
12 evidence, and anything else that I tell you to consider as
13 evidence. The questions the lawyers ask the witnesses are
14 not evidence; only the answers are evidence. You should
15 not think that -- and when I say lawyers, the questions
16 that the lawyers and defendant ask the witnesses are not
17 evidence; only the answers are evidence. You should not
18 think that something is true just because one of the
19 parties, the attorney or the defendant, asks questions
20 that assumes or suggests that it is.
21 I may ask some of the witnesses questions
22 myself. These questions are not meant to reflect my
23 opinion about the evidence. If I do ask a question, my
24 only reason would be to ask about things that may not have
25 been fully explored.

1 If you cannot hear something that is said or
2 presented or if you cannot see a witness or evidence,
3 please raise your hand immediately and we will rectify
4 that situation.
5 During the trial the prosecuting official and
6 the defendant may object to certain questions or
7 statements made by the other parties or witnesses. It's
8 my job to rule on these objections according to the law.
9 My rulings for or against one side or the other are not
10 meant to reflect my opinion about the facts of the case.
11 Sometimes the parties and I will have
12 discussions out of your hearing. Also while you're in the
13 jury room I may have to take care of other matters that
14 have nothing to do with this. Please pay no attention to
15 these interruptions.
16 You must not discuss the case with anyone,
17 including your family or friends. You must not even
18 discuss with other jurors until the time comes for you to
19 decide the case. When it is time for you to decide the
20 case, I'm going to send you to the jury room for that
21 purpose. Then you should discuss the case amongst
22 yourselves but only in the jury room and only when all the
23 jurors are there.
24 You must not talk to the defendant, the lawyers,
25 the witnesses, or anyone who may be connected with this

1 case. This means that you may not speak to these
2 individuals even if it has nothing to do with the case.
3 You should be very cautious about speaking to people
4 because you may inadvertently speak to someone connected
5 to the case. This restriction is necessary to avoid even
6 the appearance of any improper conduct on any person's
7 part. If anyone tries to discuss the case with you or in
8 your presence, tell them to stop, explain that you are a
9 juror and you're not allowed to discuss the case. If they
10 continue, leave. Report the incident to court staff as
11 soon as you return to court.
12 When the trial's over, the restrictions no
13 longer apply, and when the trial is over you may, if you
14 wish, discuss the case with anyone you choose.
15 The restrictions that I'm about to describe are
16 meant to ensure that the parties get a fair trial in our
17 judicial system. It's crucial that jurors are not
18 influenced by anything or anyone outside the courtroom.
19 Under the law, the evidence you consider must meet certain
20 standards. For example, witnesses must swear to tell the
21 truth and the lawyers must be able to -- or the parties
22 must be able to cross-examine them. Because information
23 obtained outside the courtroom does not have these
24 safeguards, it could give you incorrect or misleading
25 information that might unfairly favor one side. These

1 restrictions start now and continue until I discharge you
2 from your jury service.
3 It's your duty as a juror to decide this case
4 based solely on the evidence you see and hear in this
5 courtroom. You must not consider information that comes
6 from anywhere else. This means that until you deliver
7 your verdict, you must not read, watch, listen to, or
8 receive any information, including opinions or commentary
9 about the case, whether in newspapers, television, radio,
10 Internet, or social media platforms. You must also not
11 research any aspect of the case during the trial. This
12 means research using a cell phone, computer, or other
13 electronic device to search the Internet as well as
14 research with traditional sources, such as dictionaries,
15 reference manuals, newspapers, or magazines.
16 You must not investigate the case on your own or
17 conduct any experiments concerning the case, including
18 investigation or experiments using the Internet, cell
19 phone, computers, or other electronic devices.
20 You must not visit the scene or any event at
21 issue in this trial. If it is necessary for you to view
22 or visit the scene, court staff will take you there as a
23 group under court supervision. You must not consider as
24 evidence any personal knowledge you have of the scene.
25 You must not share any information about the

1 case by any means, including cell phone or social media.
2 This means that even if you are not discussing the case
3 with someone else, you must not post any information about
4 the case on social media, websites, or any other manner.
5 If you discover that a juror has violated my
6 instructions, please report that to my court staff.
7 I'm going to allow you to take notes during the
8 trial if you wish, but, of course, you don't have to. If
9 you do take notes, be careful that it does not distract
10 you from paying attention to the evidence, of course.
11 When you go to the jury room to decide the verdict, you
12 may use your notes to help you remember what happened in
13 the courtroom. If you take notes, do not let anyone
14 except the other jurors see them during deliberation. And
15 your notes will be -- not be examined by anyone, and when
16 your jury service concludes, your notes will be collected
17 and they will be destroyed.
18 I'm going to give you a notepad, just so you
19 know, but we'll give them after opening statements and
20 we'll take them away before closing arguments, but then
21 you'll be able to take them into the jury room, as I just
22 indicated to you; and that's because opening statements
23 and closing argument are just that. They're not evidence.
24 They're only meant to help you understand how each side
25 views the case.

1 You can see that we have a jury of seven here.
2 After you've heard all the evidence and my instructions,
3 I'm going to draw from lots one of you that will be
4 dismissed so that we'll have a jury of six.
5 Possible penalty should not influence your
6 decision. If you find the defendant guilty, it is the
7 duty of the judge to fix the penalty within the limits
8 provided by law.
9 And I may give you more instructions during the
10 trial. After all the evidence has been presented, you
11 will hear the lawyers' closing arguments. Following the
12 closing arguments, I'm going to give you additional
13 instructions about the rules of law that apply to this
14 particular case. You should consider all of my
15 instructions as a connected series. Taken all together
16 that's the law that you're going to follow. After my
17 final instructions, you're going to go to the jury room to
18 decide on your verdict. A verdict must be unanimous.
19 That means that every juror must agree on it and it must
20 reflect the individual decision of each juror.
21 Also it's important for you to keep an open mind
22 and not make a decision about anything in the case until
23 you go to the jury room to decide the case. You must not
24 let bias, prejudice, or public opinion influence your
25 decision. Each of us may have bias or perceptions about

1 other people based on stereotypes. We may be aware of
2 some of our biases, though we do not express them. We may
3 not be fully aware of some of our other biases. Take the
4 time to -- you need to test what might be automatic or
5 instinctive judgments and to reflect carefully about the
6 evidence. I caution you again to avoid reaching
7 conclusions that may have been unintentionally influenced
8 by stereotypes. You must reach your own conclusions about
9 this case individually, but you should do so only after
10 listening to and considering the opinions of the other
11 jurors who may have different backgrounds and different
12 perspectives from yours.
13 With that, that's my opening instructions and,
14 as I indicated, we'll give you more instructions as the
15 trial goes on and certainly, as I indicated, at the end.
16 With that, the People have an opening statement?
17 MR. PASKULOVICH: Yes, your Honor.
18 THE COURT: Go ahead.
19 MR. PASKULOVICH: This case is as simple as it
20 gets. A man and a woman go to the same high school
21 together. They have minimal interactions, maybe do a
22 group project once every year. Some years go by and now
23 they're 27 years old. The woman wants to be left alone,
24 nothing to do with this person she barely remembers from
25 high school. It's been years with no contact and a man

1 who refuses to obey that, a man who refuses to leave her
2 alone, despite that woman asking clearly that she wants
3 nothing to do with that.
4 You're going to hear from Brianna Walters today.
5 She was Brianna Walters at the time of this incident and
6 then she got married and now it's Brianna Kennard. She
7 went to high school with the defendant. Some time's
8 passed. They interact with each other, but now 27 years
9 old and she starts to get messages from the defendant.
10 You're going to hear that one day after not
11 answering any of these messages, her husband opens up the
12 front door and sees defendant standing there asking where
13 Brianna is. They know from all the unwanted messages that
14 don't get any response that this is him. They recognize
15 his picture. So her husband thinks quick and says, she
16 doesn't live here, she moved.
17 Immediately after you're going to hear Brianna
18 say -- and she only knows this because she went to the
19 house and saw for herself, a letter was left at her
20 mother's house an hour away in Lapeer from the defendant.
21 That happens in June of 2024.
22 The messages continued, she's going to tell you,
23 every single type of social media, Facebook. When she
24 blocks one account, you're going to see evidence of
25 defendant creating a brand new account to continue the

1 messages. No response, just continued nonstop.
2 She'll tell you when she goes to Walmart and
3 sees the defendant he's repeatedly saying hi. She's not
4 responding. He's walking around the store waiting for her
5 to leave.
6 She'll tell you then in December of 2024 her and
7 her husband were at home. Again, someone's at the door.
8 It's defendant. They don't answer the door. He's
9 standing there for 15, 20 minutes, knocking, knocking,
10 knocking. Doesn't get the cue to leave, never has been
11 talked to in a friendly way.
12 But the best part is in October Brianna finally
13 responded. The one time she responded and said, you're
14 making me extremely uncomfortable, leave me alone, don't
15 want anything to do with you. You'll see the Facebook
16 message for that.
17 Defendant refused to listen every single time.
18 When police finally spoke to him, you'll hear from
19 Detective Mendez that defendant admitted to everything he
20 did, all of his Facebook accounts, going there and making
21 this contact with Brianna. He did not deny any of it.
22 He'll acknowledge the messages that were sent. And you'll
23 hear from officers that responded on the dates that
24 defendant showed up at Brianna's house, and they'll talk
25 about how Brianna was genuinely afraid and the discomfort

1 that they saw that it’s cost her. They looked for the
2 defendant when they responded on those dates, but he was
3 already gone.
4 Again, super simple concept, someone who just
5 won’t leave a woman alone. And the judge is going to tell
6 you more about the law, but she read the elements of the
7 crime. All I ask is that you be reasonable. If you
8 follow the evidence, listen to what the defendant says in
9 his own messages, if you listen to what the defendant
10 states in his own interview, you’ll be able to see.
11 Follow the defendant’s word, follow what the victim says.
12 It's not any different. Same set of facts and I think
13 you’ll find the defendant guilty as charged.
14 THE COURT: Thank you.
15 Mr. Parton, do you have an opening statement?
16 THE DEFENDANT: Yes, your Honor.
17 THE COURT: Go ahead.
18 THE DEFENDANT: Your Honor and members of the
19 jury, my name is Fox Parton and I am the defendant in this
20 matter. Today I will ask you to carefully examine not
21 only what is said in this courtroom but also how this case
22 was prepared, how the evidence was presented as well as
23 withheld or disclosed late.
24 This is a case not just about what is said
25 happened or what screenshots are put in front of you, but

1 about how the events are being described, by whom, and
2 with what consistency, and consistency is extremely
3 important here.
4 You'll hear testimony that reflects different
5 accounts from the complainant, from law enforcement, from
6 digital records, and from the interview that I allegedly
7 participated in. You'll be asked to consider how these
8 narratives relate to each other and what significance any
9 gaps or differences might have.
10 Over the course of the trial, you'll hear what
11 was submitted as evidence and also what was not. You'll
12 be asked to consider how that affects the picture in this
13 case. You will also be introduced to the timeline and
14 method by which this case has developed and learn that
15 while the complainant has described the alleged offense as
16 occurring at different times over the course of anywhere
17 from 1 to fourteen years, the prosecution has put the
18 timeline as the offense based on the evidence as they saw
19 it between June and December 2024. Harder evidence puts
20 the timeline of the offense in question slightly later,
21 even between July and December 2024.
22 You'll hear testimony from the complainant and
23 her spouse. You'll hear how certain claims were made, how
24 supporting materials were generated or shared, and what
25 questions remain open around the underlying events and the

1 digital materials.

2 I'll explain some factual background that may be

3 relevant as you evaluate. As the prosecutor said, I'm 27

4 years old. I have no prior criminal record and have been

5 fully compliant with bond conditions. I work three jobs,

6 one in security, one in parking services, and another I

7 just started as a generator technician. I am also an

8 honorably discharged veteran.

9 I've attempted to raise questions about the

10 material provided in this case, particularly related to

11 digital messages and screenshots and how they align or

12 don't align and a Facebook warrant return that was only

13 disclosed shortly before trial to me. While that return

14 may support parts of my account, you'll also hear me

15 raising issues about its integrity either way, despite its

16 exculpatory nature to me.

17 I ask you to keep one question in mind as you

18 listen. Does the evidence presented meet the legal

19 standard required to prove criminal stalking beyond a

20 reasonable doubt? This case will focus heavily on digital

21 records, police interviews, and witness statements from

22 the complainant and her spouse. It will also involve

23 questions about when evidence was obtained, how it was

24 presented, and what information is available to verify it.

25 You'll hear key items such as 911 recordings,

1 police interviews, and surveillance files which were in
2 the prosecution's possession as early as January 7th but
3 were not made available to the defense until May 9th, four
4 months later. Some files, including a Facebook warrant
5 return and e-mail screenshots, were only provided to my
6 public defender six days before trial, and I reviewed them
7 on May 13th. This timeline may be relevant to your
8 understanding of how this case was developed and whether
9 all material was fairly reviewed in time.
10 You will hear that the key allegations
11 concerning two dates, June 27th and December 21st, where the
12 complainant's husband called police claiming that I was on
13 their front door where I am alleged to have visited the
14 complainant's residence, but you'll also hear that there's
15 no surveillance video of the incident, no fingerprint
16 evidence, no police body camera footage of me at their
17 residence, no statements from neighbors, and no direct
18 credible eyewitnesses, witness confirmation aside from the
19 complainant and her spouse. Instead the prosecution will
20 present an interview recorded months later. You will see
21 that my face is not visible through most of the video. My
22 identity is never formally confirmed on camera with proof
23 of identification. The interview table is out of view,
24 even as documents are placed in front of me. I respond to
25 content read aloud by the investigator, which appears to

1 prompt my responses.

2 You may notice that some things I've alleged to
3 have said during that interview do not actually appear in
4 the screenshots, complainant testimony, or the warrant
5 return, contradicting all of those narratives, and that my
6 answers may simply reflect confusion or memory issues or
7 the pressure of a police investigation.

8 You'll also see at least one major contradiction
9 between the written report and video that calls into
10 question the integrity of the evidence.

11 You'll be shown screenshots, e-mails, and
12 documents that the prosecution claims were sent by me.
13 You'll hear that these e-mails are presented without
14 metadata or digital verification, such as DKIM or SPF
15 e-mail headers. No digital chain of custody has been
16 provided. Certain video files show last modified dates as
17 recent as May 2025, which is months after the incidents,
18 technical access problems occurring while trying to review
19 the files as well as duplications in the logs that have
20 multiple versions of videos where one is dated May 8,
21 2025, the day before the evidence was disclosed.

22 You'll also hear that no bodycam or dashcam
23 footage has been presented for the June 27th incident,
24 despite a call to police having been made, again calling
25 into question the integrity of the stored digital evidence

1 and their procedures.

2 You will hear 911 recordings from the

3 complainant's husband, not the complainant herself. You

4 may hear claims he made about messages he alleges came

5 from me involving topics like firearms or surveilling the

6 complaining witness's home, messages not shown to exist

7 anywhere in the screenshots or digital evidence that has

8 been submitted.

9 You may also hear about an allegation that I

10 followed the complainant to a Walmart store in the town

11 that I live in, which is 25 miles away from her and

12 outside of the county where she lives. No visual or

13 transactional evidence is provided to confirm that that

14 encounter happened.

15 You will hear from the complainant and her

16 husband. You may notice different timelines are offered

17 about when contact allegedly began. One says 2014,

18 another says three years ago, another states it had only

19 been a few months without supporting evidence.

20 You'll also see the warrant return shows no

21 Facebook contact from any named accounts before July 2024,

22 outside the scope of the timeline of the events offered by

23 the prosecution of June to December 2024.

24 Screenshots submitted by the complainant never

25 found in the official Facebook warrant return. Problems

1 with the warrant return itself, again, even though I
2 consider it to be exculpatory to myself, we'll discuss why
3 there may be issues with that return anyway.
4 You will also hear about a letter said to have
5 been left at the residence. You'll be asked to consider
6 whether any forensic evidence or credible witness
7 testimony links the defendant to that letter.
8 You will be presented with the results of the
9 Facebook search warrant. It will show no conversations
10 between two named accounts appearing linked to me and the
11 complainant, no link between myself and any of the
12 alternative accounts alleged to be me. You may be asked
13 to consider how identity is determined for social media
14 accounts and whether an account having someone's name or
15 picture on it means that they control it, particularly in
16 an age where artificial intelligence very easily can
17 generate headshots of people.
18 You'll hear about emerging concerns regarding
19 digital authenticity, how e-mail screenshots and media
20 files can be altered or spoofed. This case involved
21 several forms of digital evidence and you'll be asked to
22 consider how that evidence was handled, stored, and
23 verified.
24 At the conclusion of this trial, you'll be asked
25 to evaluate all of the evidence, what was submitted, when

1 it was disclosed, and how it supports or fails to support
2 the elements of the charge. I respectfully ask you to
3 consider that evidence carefully, and I hope that after
4 deliberation you will find more than enough reasonable
5 doubt to find me not guilty.
6 Thank you very much for your time.
7 THE COURT: Thank you, Mr. Parton.
8 With that you can call your first witness.
9 MR. PASKULOVICH: Your Honor, may we approach
10 briefly?
11 THE COURT: Yes.
12 (At 11:27 a.m., an off-the-record discussion was
13 held at the bench.)
14 THE COURT: Okay. You may call your first
15 witness, and thank you for getting -- okay. You may call
16 your first witness.
17 MR. PASKULOVICH: People call Brianna Kennard.
18 THE COURT: We'll get you your notebooks in just
19 a second. My law clerk stepped out, so my court
20 recorder's doing double duty.
21 Just have a seat and we'll be right with you.
22 Hopefully it's the right height. I will indicate to you
23 before we get started that what's in front of you, it
24 looks like something that would magnify your voice, but it
25 doesn't. It's just simply for recording purposes. So I

1 just ask you to keep your voice up so that you don't have
2 to repeat yourself, okay?
3 We're just going to hand out the juror notepads
4 to jurors with pens so that they can take notes if they
5 choose to do so, and then I'm going to have you face me
6 and raise your right hand.
7 Do you swear or affirm the information you're
8 about to provide the Court will be truthful, accurate, to
9 the best of your ability, so help you God?
10 MS. KENNARD: Yes.
11 THE COURT: Thank you. As soon as all the
12 jurors have their notepads I'm going to ask you to state
13 your full name and spell it.
14 Thank you, Kelli.
15 Okay. You can state your name and spell it for
16 our court recorder and our jurors.
17 THE WITNESS: Brianna Kennard, B-R-I-A-N-N-A, K-
18 E-N-N-A-R-D.
19 THE COURT: Go ahead, whenever you're ready.
20 BRIANNA KENNARD
21 was called at 11:30 a.m. by the People, sworn by the
22 Court, testified:
23 DIRECT EXAMINATION
24 BY MR. PASKULOVICH:
25 Q Do you know an individual named Fox Robert Parton?

1 A Yes.

2 Q How do you know him?

3 A We met in high school. We went to high school together.

4 Q What high school did you go to?

5 A North Branch High School.

6 Q And do you remember if you both started at that high

7 school in 9th grade?

8 A I was in the district since 1st grade. I'm not sure when

9 he started.

10 Q Okay. And was it a situation where just two people were

11 in school or do you remember a specific time meeting him?

12 A The first time that I remember was in 9th grade AP English

13 class.

14 Q And was there anything remarkable about that?

15 A We were in a group project together at one point.

16 Q Okay. Would you recognize him if you saw him again?

17 A Yes.

18 Q Do you see him in the courtroom today?

19 A Yes.

20 Q Could you point to him and identify something that he's

21 wearing? Would you state clothes that he's wearing?

22 A Oh, a black blazer.

23 MR. PASKULOVICH: Your Honor, may the record

24 reflect the witness identified the defendant?

25 THE COURT: It will.

1 BY MR. PASKULOVICH:
2 Q When you first met the defendant in 9th grade, could you
3 kind of describe to the jury a little bit what it was
4 like, if there was coincidences, if there's anything
5 unusual?
6 A We were friendly at first, basically just acquaintances
7 and we were in that group project together.
8 Q Did you guys hang out together during high school?
9 A The only time that I remember hanging out was we worked on
10 the group project together at my parents' house.
11 Q Did you do anything social outside of school at all with
12 defendant during high school?
13 A Not that I remember.
14 Q Talk on the phone or text?
15 A We had each other's phone numbers.
16 Q Okay. Would you consider him like one of your best
17 friends or is just like a, like you said, someone at
18 school?
19 A No. Like I said, we were mostly acquaintances, friendly,
20 you know.
21 Q Okay. When you graduated from high school, did you remain
22 in contact or communication with defendant at that point?
23 A I never reached out to him.
24 Q Okay. So from high school, when was the next time you
25 heard from the defendant?

1 A So I got a message on Facebook from him about seven years
2 later, so that would have been two or three years ago now.
3 Q Okay. And what was that, if you recall?
4 A He was reaching out. I don't remember the content of the
5 message.
6 Q Did you think anything unusual about it at that time?
7 A I thought it was strange that he was reaching out seven
8 years after we graduated with no contact in between then.
9 Q Did you answer?
10 A No, I did not.
11 Q Okay. And then after that do you recall when you next had
12 any contact with him?
13 A I never had contact with him until October 10th when I
14 responded.
15 Q Okay. After that initial message he tried contacting you
16 again?
17 A Yes. There were quite a few Facebook messages, LinkedIn
18 messages, and then when he came to my home the summer of
19 last year, 2024.
20 Q Okay. You said that was October that he came to your
21 home?
22 A No. The first time he came to my home was June of 2024.
23 Q Okay. So before June 2024 he had sent you multiple
24 messages in what form, social media or text? How'd he
25 send the messages?

1 A Facebook Messenger and then LinkedIn messaging.
2 Q And what was he saying to you?
3 A It was mostly attempts to reach out for contact. He would
4 send poems. There was -- he would talk about, you know,
5 in the past about high school. There were some messages
6 where he would talk about wanting to be like a slave to
7 me. That was part of it.
8 Q And at this point what were you thinking when you were
9 receiving these messages?
10 A I was definitely uncomfortable, yeah.
11 Q Did you respond to anything at this point?
12 A No, I did not.
13 Q Okay. So fast forward to June. You had been getting
14 messages for how long at that point?
15 A That would have been two years or so.
16 Q Did you block any of his accounts at that point?
17 A At that point, no, I did not.
18 Q Just would not answer.
19 A Correct.
20 Q Okay. So June you said the defendant showed up to your
21 house.
22 A Yes.
23 Q Was that June 27, 2024?
24 A Yes.
25 Q Can you describe what happened that day?

1 A Yes. So I was home with my husband. Somebody had knocked
2 on the door. My husband answered the door, recognized
3 Fox. Fox had said, does Brianna Walters live here, and my
4 husband said, no, she moved out six months ago. And then
5 that was the end. He turned, left, my husband closed the
6 door.
7 Q So you said that your husband knew it was Fox. Did the
8 two of them know each other?
9 A They did not.
10 Q So how did he know who Fox was?
11 A He had recognized him from the pictures, like Facebook
12 profile pictures.
13 Q Had you shown him pictures of Fox?
14 A Yes.
15 Q Okay. So that was the only way he knew who he was.
16 A Yes.
17 Q By you telling him about him.
18 So he came to the door. He said you moved. Was
19 there anything weird about that afterwards? Did you
20 immediately know it was him?
21 A Yeah. So I was on the couch and I could hear him talking,
22 and I had a slight view of the front door from where I was
23 sitting.
24 Q What did you do after you saw it was him?
25 A I was panicking a little bit, and then that's when my

1 husband called the police station to report it.
2 Q Had you ever given him the city you live in?
3 A No. I had never given him any information about where I
4 lived.
5 Q At this point you hadn't said anything to him, correct?
6 A Correct.
7 Q When he came to your house on June 27, 2024, did you
8 personally see him at all, or were you just listening?
9 A Yes. I could see him from where I was sitting on the
10 couch.
11 Q And did he have anything with him? Was there anything
12 remarkable about his appearance?
13 A No, not that I remember.
14 Q Did he seem to be in a mood? Like was he happy, angry, or
15 what was your sense from it?
16 A I wouldn't say there was any connotation. It was, you
17 know, does Brianna Walters live here.
18 Q And how did that make you feel that he was asking for you?
19 A I was very scared, yeah.
20 Q When the police got there, did you speak to them about
21 contacts coming from him?
22 A Yes.
23 Q And did they do anything about it at that time, or what
24 was -- what happened after that?
25 A I had showed the detective, you know, the messages,

1 described the history. At the time since we couldn't
2 confirm whether it was -- if Fox knew that I lived there
3 or not, we didn't want to confirm that, so we didn't take
4 any action, further action.
5 Q Can you explain what you mean by -- did you know Fox --
6 you didn't know if Fox knew that you lived there. What
7 does that mean?
8 A So since my husband had said she moved out six months ago,
9 we didn't want to confirm to him that I did live there
10 still.
11 Q Gotcha. So by pursuing the police report, he would
12 ultimately have to know --
13 A Correct.
14 Q -- your address, that you lived there. Makes sense.
15 So after talking to the police and not pursuing it,
16 did the contact continue from him?
17 A Yes. I continued (inaudible) messages.
18 Q And daily, weekly, monthly type thing?
19 A At that point in time I would say probably monthly, but
20 that's an estimate.
21 Q All right. Now, at any point did things escalate or
22 become more than just Facebook and social media messages?
23 A Yes. So he did come to my house again in December.
24 Q Okay. And prior to that had you seen him anywhere?
25 A Yes. So I saw him with my mom at the Walmart in Lapeer.

1 Q And what month was that?
2 A It was October 19th of 2024.
3 Q All right. So you and your mom were shopping at the
4 Walmart and what, if anything, happened while you were
5 there?
6 A So my mom and I were leaving the Walmart, and as we were
7 approaching the exit, Fox had come around the corner at
8 the same time. So we were both exiting the store at the
9 same time, and he walked behind us and tried to get my
10 attention. So he was waving, saying hello, and he said,
11 it'd be more normal if you talked to me in person like
12 this.
13 Q So this is in the store.
14 A This is as we're exiting the store, and then he continued
15 to wave as we walked out the doors.
16 Q Were you responding in any way?
17 A No.
18 Q And he just continued to try to make contact with you.
19 A Yeah.
20 Q How long did he -- or how long was he waving and saying
21 hello and whatnot?
22 A It was probably only a minute.
23 Q Did you feel uncomfortable by it?
24 A Yes.
25 Q At that point was it your belief that he was just at the

1 store at the same time, or did you feel it was kind of
2 intentional?
3 A I don't think it was intentional. I think he just
4 happened to be there at the same time.
5 Q What part about that made you uncomfortable?
6 A So this was after I had asked him to stop contacting me,
7 after I'd messaged him to stop contacting me immediately.
8 So this event occurred about nine days after I messaged
9 him that. So him trying to make contact after that, that
10 was the most scary part of it for me.
11 Q Sure. Just one moment.
12 So you said you messaged him in October.
13 A Yes.
14 Q About not having contact with you. Messages, were they
15 coming in October through multiple accounts, or was it
16 one, or what was his main way of contacting you at that
17 point?
18 A At that point it was mostly the Facebook messages from
19 multiple accounts.
20 Q Would you recognize some of those Facebook messages if you
21 saw them?
22 A Yes.
23 MR. PASKULOVICH: Showing defendant People's
24 Proposed 7, 8, 9, and 10.
25 THE DEFENDANT: I'm sorry, could you repeat?

1 MR. PASKULOVICH: Showing the witness 7, 8, 9,
2 and 10.
3 THE DEFENDANT: Oh, yeah, I object.
4 THE COURT: Go ahead if you want to show them to
5 her.
6 BY MR. PASKULOVICH:
7 Q If you could look at People's Proposed Exhibits 7, 8, 9,
8 and 10, and, I guess, if you want to look at the name at
9 the top of each of them, those messages, and see if you
10 recognize those. We can go one at a time.
11 So People's Proposed 7, do you recognize what that
12 is?
13 A Yes.
14 Q And what is that?
15 A These are messages that I received from Fox on Facebook
16 Messenger.
17 Q And when were those messages received?
18 A October 11th.
19 Q That's 2024?
20 A Yes.
21 Q And based on looking at those messages and your memory
22 receiving them, it's a fair and accurate depiction of the
23 messages?
24 A Yes.
25 Q You, in fact, took a screenshot of them.

1 A Yes.
2 Q Now, how did you know that was Fox messaging you then?
3 A So the Facebook profile picture is a picture of him and
4 the style and content matches messages that I'd previously
5 received.
6 MR. PASKULOVICH: Your Honor, at this time
7 People would move to admit People's Proposed no. 7 into
8 evidence.
9 THE COURT: Thank you.
10 Any objections?
11 THE DEFENDANT: Yes, your Honor. I object to
12 the admission of these screenshots under Michigan Rules of
13 Evidence 401, 403, and 901. First, under MRE 401, they
14 lack relevance because the screenshots are not
15 corroborated by additional evidence in the Facebook
16 warrant return, which shows no record of these messages
17 existing. They also lack proper timestamp data, making it
18 impossible to place them along a course of conduct as
19 required by Michigan Stalking Statute. I notice they have
20 no year, dates on them.
21 Second, under MRE 901, they are not
22 authenticated if there's no metadata, no e-mail, or
23 platform headers, or testimony from a digital custodian or
24 forensic analysis offered. Without any of that, they are
25 simply undated, unattributable images, not verified

1 communications.

2 Third, under MRE 403, they risk -- their risk of

3 unfair prejudice substantially outweighs any probative

4 value. The complaining witness has given multiple

5 conflicting timelines. There's other contradictions noted

6 in the police report. Other issues of timing where she

7 claims I was at her house at midnight, 911 call timing --

8 THE COURT: Hang on.

9 MR. PASKULOVICH: The defendant's testifying.

10 THE COURT: No. No. Okay. In response to his

11 objections? First of all, it is relevant, so that's not

12 an issue.

13 MR. PASKULOVICH: Correct. It's relevant to the

14 charge. It's messages from the defendant about that

15 instant offense.

16 THE DEFENDANT: How can it be --

17 THE COURT: Stop, please.

18 MR. PASKULOVICH: Authentication, all that is

19 required to be proven is that the witness can prove this

20 is what it purports to be. She has personal knowledge.

21 It's the messages she received. She provided the

22 screenshot, which she's looking at it right now saying

23 it's accurate.

24 THE COURT: So the issue regarding timestamp, he

25 mentioned that.

1 MR. PASKULOVICH: It has a date on the message.
2 THE COURT: Oh, it has a date on it, but not a
3 timestamp, just the date; is that --
4 MR. PASKULOVICH: Can I --
5 THE COURT: I think he indicated there's no
6 timestamp.
7 MR. PASKULOVICH: There is a timestamp, your
8 Honor.
9 THE COURT: Oh, there is a timestamp.
10 MR. PASKULOVICH: Yes.
11 THE DEFENDANT: If I could see it, because I
12 didn't actually get to see it before you --
13 THE COURT: Okay. You --
14 MR. PASKULOVICH: Just for the record, I made
15 multiple opportunities for the defendant to see them.
16 THE COURT: For him to see, yes. So they are
17 timestamped, and as it relates to the accuracy, the last
18 objection, or one of the last objections.
19 MR. PASKULOVICH: Your Honor, there's no --
20 defendant is citing things that are not in evidence as a
21 way to try to discredit this. We have a credible witness,
22 received a message, and it's a screenshot of it on the
23 message platform.
24 THE COURT: Thank you.
25 I'm going to admit Exhibit no. 7. The issue

1 regarding the accuracy goes to the weight and not the
2 admissibility of the evidence. So no. 7 will be admitted.
3 MR. PASKULOVICH: Thank you, your Honor.
4 (At 11:46 a.m., People's Exhibit no. 7
5 admitted.)
6 BY MR. PASKULOVICH:
7 Q Number 7, People's admitted Exhibit no. 7, just generally,
8 would you be able to tell the jury what the defendant was
9 saying in that message? You don't have to read the whole
10 thing but just the type of message you received so they
11 can get an idea.
12 A Yeah. So he's saying, have mercy on me. I don't mean you
13 any harm. I hope you're happy. You can say whatever you
14 want or need to say to me and I won't lash out at you.
15 Please talk to me.
16 Q And after all those, there's nothing you respond, correct?
17 A No, there's no response from me.
18 Q What time were the messages received at -- or sent at?
19 A These were from October 11th at 4:29 p.m.
20 Q Okay. Now, if you could look at People's Proposed Exhibit
21 no. 8. Do you recognize what that is?
22 A Yes.
23 Q And what is it?
24 A This is the message I sent to Fox from my Facebook
25 Messenger.

1 Q Okay. And what was the name of the Facebook account you
2 sent it to?
3 A It just says Fox.
4 Q And that's the same account you'd been receiving messages
5 from.
6 A This is one of them.
7 Q Okay. So at this point you know that that's the message
8 because you sent it.
9 A Yes.
10 Q And is it a fair and accurate depiction of the message you
11 sent, the screenshot of the message?
12 A Yes.
13 Q What is the date it says on there?
14 A October 10th at 5:31 p.m.
15 MR. PASKULOVICH: Your Honor, People would move
16 to admit People's Proposed Exhibit no. 8 into evidence.
17 THE COURT: Any objections to Exhibit n. 8?
18 THE DEFENDANT: I object to it on the same
19 grounds as well as the fact that he doesn't have personal
20 knowledge because he can't possibly speak to the fact that
21 I would be the operator of the account.
22 THE COURT: Okay. Exhibit no. 8 will be
23 admitted. It is relevant and it's her statements going to
24 another account. It goes to the weight and not the
25 admissibility and it will be admitted.

1 (At 11:48 a.m., People's Exhibit no. 8
2 admitted.)
3 BY MR. PASKULOVICH:
4 Q Could you read to the jury the message that you sent to
5 the defendant?
6 A Yes. I need to make it very clear that your messages are
7 unwanted and have made me uncomfortable. I'm asking you
8 to stop contacting me immediately. If you do not cease
9 this behavior, I will have to take further action.
10 Q And was there any response to that?
11 A Yes.
12 Q Could you read that?
13 A Yes. Okay. I'm sorry I made you uncomfortable. Thank
14 you very much for responding. I'm sorry for everything
15 else, too. If there's anything I want more than anything
16 else, it's to make things okay with you somehow. We're
17 both human beings. I respect your boundaries. If you
18 state them, I will not say anything that makes you
19 uncomfortable if you specify. Please forgive me.
20 Q Now, at the time that you sent this message, which you
21 said was October -- what was the date, 12th, I believe you
22 said?
23 A I sent this message on October 10th.
24 Q Okay.
25 A At 5:31 p.m.

1 Q So October 10th, how long had you been receiving messages
2 from the defendant at that point?
3 A When they started again after I --
4 Q Had this been, like, months?
5 A Years at this point.
6 Q Years, okay. And this is the first time you'd responded
7 to him in any way.
8 A Yes.
9 Q Had you responded to him at any point after that?
10 A No.
11 Q Now, defendant said he'd respect your wishes in that
12 message. When was the next time that you got messages
13 from the defendant?
14 A Less than an hour, about an hour after this message.
15 MR. PASKULOVICH: Your Honor, may I approach the
16 witness?
17 THE COURT: Yes.
18 BY MR. PASKULOVICH:
19 Q All right. So if you could just briefly look at People's
20 Proposed Exhibit no. 9 and 10 and indicate if you
21 recognize those and state the date that's on both of them.
22 A Yes, I do recognize these. This is from October 10th at
23 6:50 p.m. and this is from October 12th at 12:37 p.m.
24 Q Okay. So one of them is hours after the message you sent.
25 A Yes. So I sent my message at 5:31 p.m. on October 10th,

1 and this message was from October 10th at 6:50 p.m.
2 Q And what account is it from?
3 A This is the Johnald account.
4 Q And who do you recognize that to be?
5 A The profile picture is Fox.
6 Q And was there anything based on the content of the message
7 that made you realize it was Fox?
8 A Yes. The content and style is the same as the other
9 messages.
10 Q All right. And are those fair and accurate depictions of
11 the messages you received?
12 A Yes.
13 MR. PASKULOVICH: Your Honor, move to admit
14 People's Proposed 9 and 10 into evidence as well.
15 THE COURT: Any objections?
16 THE DEFENDANT: The same objections as before,
17 your Honor.
18 THE COURT: All right. Well, they certainly do
19 seem to be relevant, and as to the authenticity, she has
20 indicated that as well, and any issues regarding that
21 would go to the weight and not its admissibility as
22 evidence. So they will be admitted.
23 (At 11:51 a.m., People's Exhibit nos. 9 and 10
24 admitted.)
25 BY MR. PASKULOVICH:

1 Q All right. So, now, at this point in time it's October.
2 Had you had any increased fear or at this time it was
3 annoying? How were you feeling with all these messages
4 from the defendant? You'd reached out to him at one
5 point.
6 A Right. So after I said -- I made it clear that I wanted
7 the messages to stop and my boundaries weren't respected
8 after that, that's when I started to feel fear.
9 Q And what exactly were you fearful of?
10 A I was afraid that things were going to escalate and I was
11 afraid that it wasn't going to stop.
12 Q Not to pry, but when you say escalate, did you think he's
13 going to be violent, or what were your concerns?
14 A I mean escalate in more visits to my home. That's mostly
15 what I was concerned about.
16 Q Did you feel threatened by him?
17 A Yes.
18 Q So each message that you got, did he invoke these
19 feelings? Is it a constant reminder of when you received
20 them or were you trying to block them at this point? Did
21 you open each message you got?
22 A Yes. So at this point I had blocked all the accounts. I
23 had changed my Facebook privacy settings so that people
24 couldn't message me because I was waking up to these
25 messages quite often at this point and they did make me

1 afraid and uncomfortable.
2 Q Did you change any of your day-to-day activities or make
3 any changes to anything based on that fear?
4 A Yes. So especially after the first visit to my home, I
5 installed more security cameras. I didn't go out my front
6 yard to garden by myself anymore. I avoided being home by
7 myself as much as possible.
8 Q Now, at this point did you figure out the why, I guess?
9 Was that a question to you, why you were the one who
10 continued to get contacted by him?
11 A I guess I never knew why it continued.
12 Q Did he say why in these messages?
13 A The theme, I guess, of the messages was he was looking for
14 forgiveness.
15 Q Forgiveness for what, did he indicate?
16 A How he treated me in high school.
17 Q Do you have any recollection of being treated poorly in
18 high school or something that you would need to forgive
19 him for?
20 A Yeah. It was similar situation where he was interested in
21 me in high school and I was not interested. So that
22 rejection made him angry and upset.
23 Q Did it surprise you that this was coming up so many years
24 later?
25 A Yes.

1 Q Okay. Now, all the messages that we've seen so far were
2 Facebook, correct?
3 A Yes.
4 Q Did you get any on other social media at that time?
5 A Yes, LinkedIn.
6 Q All right. And if I showed you some of the LinkedIn
7 messages, would you recognize them?
8 A Yes.
9 MR. PASKULOVICH: Approach with People's
10 Proposed Exhibit 11 and 12. May I approach the witness,
11 your Honor?
12 THE COURT: Yes.
13 MR. PASKULOVICH: Showing the defendant.
14 THE DEFENDANT: I object, your Honor.
15 MR. PASKULOVICH: I was just showing him
16 before --
17 THE COURT: Hang on. I'll ask if you have any
18 objection in just a moment.
19 BY MR. PASKULOVICH:
20 Q If you want to look at those and see if you recognize
21 them. Do you recognize what those are?
22 A Yes, I do.
23 Q What is People's Proposed Exhibit no. 11?
24 A So 11 is a LinkedIn message from October 14th.
25 Q That's '24?

1 A Yes.
2 Q And what is the -- or who's the message from?
3 A It says Giovanni Smith, but the content and style of
4 writing indicates, like, to me that it was also from Fox.
5 Q Can you elaborate a little bit more for the jury? When
6 you say "the content," what specifically is being said in
7 there that makes you realize that it's Fox?
8 A So like I said before, most of them are about, you know,
9 forgiveness, wanting to be in my life. He references my
10 wedding photos in this one. So I had just gotten married
11 ten days before this message was sent. He is talking
12 about wanting to, you know, be my slave again in this
13 message. So that's the theme from previous messages.
14 Q Has anyone else ever sent you messages of similar content?
15 A No.
16 Q So the only person who ever had in the past was Fox.
17 A Yes.
18 Q And is that a fair and accurate depiction of the message
19 that you received on that date?
20 A Yes.
21 Q Now, People's Proposed Exhibit no. 12, do you recognize
22 what that is?
23 A Yes. So this is another LinkedIn message from November
24 27th.
25 Q And who's it from?

1 A It says Winston Merkleberry.
2 Q And who did you interpret that to be?
3 A I interpreted this as being Fox again based on the
4 content.
5 Q In that message is there anything in particular
6 content-wise that stuck out to you?
7 A He's basically -- he says, I sincerely do not mean to hurt
8 or scare you. I still become impatient, not as angry as I
9 used to get, but impatient, I know.
10 Q Is that a fair and accurate depiction of the message you
11 received on that date?
12 A Yes.
13 MR. PASKULOVICH: Your Honor, People would move
14 to admit People's Proposed Exhibits 11 and 12.
15 THE COURT: Any objections?
16 THE DEFENDANT: I object to the admission of the
17 screenshots once again because the only thing that Brianna
18 is professing to connect these accounts to me is the fact
19 that she claims the style appears to match my style when
20 they have absolutely no other link to me; and, again, she
21 has no personal knowledge of this issue because she
22 doesn't see the other side of the account.
23 THE COURT: Thank you.
24 And I will admit those two exhibits as, again,
25 it goes to the weight and not the admissibility, and

1 you'll certainly have questions to ask her about all of
2 these documents if you choose to do so.
3 Go ahead.
4 (At 11:58 a.m., People's Exhibit nos. 11 and 12
5 admitted.)
6 BY MR. PASKULOVICH:
7 Q At this point was there a reason that you know of why he
8 changed from Facebook to LinkedIn? Had accounts been
9 blocked or been unable to be contacted?
10 A Yeah. So that's what I said. I changed my Facebook
11 privacy settings so that people who didn't have any mutual
12 friends couldn't message me and I blocked all the
13 accounts.
14 Q So when you made defendant unable to contact you on
15 Facebook, the messages on LinkedIn began.
16 A There were messages on LinkedIn before I blocked Facebook.
17 Q Okay. In the message in People's Proposed -- or admitted
18 Exhibit no. 11 you said that the defendant mentioned
19 something about your wedding and you had just gotten
20 married the week before.
21 A Yes.
22 Q How'd that make you feel?
23 A That made me uncomfortable because I had not posted any
24 information myself about getting married. So he must have
25 found this information somewhere else.

1 Q At this point in time was all this having an impact on
2 your day-to-day life?
3 A Yes.
4 Q Can you describe that again? At this point it's
5 intensified? Is there anything in particular that sticks
6 out to you?
7 A Yes. So, I mean, like I said, my biggest thing is I avoid
8 being home by myself. You know, I'm paranoid when I get
9 in my car in the morning to go to work. I was constantly
10 on the lookout. So that's, you know, daily stress of just
11 being hyperaware.
12 Q At this point it still had been the only time you
13 contacted him was to say to leave you alone in October.
14 A Yes.
15 Q All right. And did the messages continue after the
16 LinkedIn messages? Did you keep getting them on various
17 platforms? After those messages did you get more?
18 A I think so.
19 MR. PASKULOVICH: Your Honor, may I approach the
20 witness with People's Proposed 13, 14, 15 -- actually, 13,
21 14, 15, 16? I think it'd be easier to do it that way than
22 go --
23 THE COURT: Yes, I think so, too.
24 MR. PASKULOVICH: So People's Proposed 13
25 through 17. I'm just going to show defendant, then.

1 THE COURT: Yes.

2 BY MR. PASKULOVICH:

3 Q Do you want to take a look at these messages? Again, same

4 routine. Just glance at them, see if you recognize them,

5 content.

6 A I do recognize these, yes.

7 Q All right. Now, I guess, going one by one, just to go one

8 in a row, but for 13, what was the name of the person who

9 sent it and is there a day? If you can just for each one

10 do that if you recognize it.

11 A This says it's from Xof --

12 Q Okay.

13 A -- and it's from November 7th.

14 Q And then for People's Proposed Exhibit 14?

15 A Can I ask that you look at the numbers? I can't tell

16 which ones they are.

17 Q Oh, sure, so 14, 15, 16, 17.

18 A Thank you. So for Exhibit 14, this is from Xof on

19 November 8th, and I do recognize these messages.

20 Q All right. And then 15?

21 A This one is also from Xof from November 12th, and I do

22 recognize this one.

23 Q And then the next one, 16?

24 A I think I'm missing one. Okay. So for 16 -- 15, sorry,

25 Exhibit 16 -- Exhibit 15 --

1 Q My handwriting's bad. I'm sorry.

2 A This is also from Xof on November 12th, and I do recognize

3 this one also. And then for 17, also from Xof, November

4 9th, and I do recognize these messages.

5 Q At this point are these messages from accounts you've

6 received messages from previously? It sounded like a lot

7 of them are the same account.

8 A This is all the same account, yes.

9 Q And how did you know it was him?

10 A So it's his profile picture on this one. Xof is his name

11 backwards, Fox backwards, and the content and style is

12 consistent with the rest of the messages.

13 MR. PASKULOVICH: Your Honor, I'd move to admit

14 People's Proposed Exhibits 13 through 17.

15 THE COURT: Any objections?

16 THE DEFENDANT: Objection under MRE 401, 403,

17 and 901, your Honor.

18 THE COURT: Anything more specific?

19 THE DEFENDANT: It's the same content as the

20 previous objections.

21 THE COURT: Thank you.

22 Anything else you wanted to state?

23 MR. PASKULOVICH: Your Honor, I think that she

24 has the requisite knowledge. It would go to weight rather

25 than admissibility.

1 THE COURT: And, yes, it is also relevant and it
2 will go to -- it will be admitted, and your objections go
3 to the weight, which you'll be able to question if you
4 choose to do so. Thank you.
5 (At 12:05 p.m., People's Exhibit nos. 13 through
6 17 admitted.)
7 BY MR. PASKULOVICH:
8 Q Now, in those messages did the tone change at all compared
9 to the messages you had been receiving? Is it still
10 apologies, or what is the general sense of these messages?
11 A Yes. They're still apologies, still asking for contact.
12 This one says, please, Brianna, I'm not the most greatest
13 guy on earth.
14 Q How are these messages making you feel at this point? Now
15 we're in over a month since you had requested all contact
16 stop.
17 A Yeah. I was still uncomfortable with the messages and
18 still feeling scared because my boundaries and my ask to
19 stop contact was not respected.
20 Q Had you been sharing your concern with family or friends
21 or anyone at this point? Was it just on your own? Was it
22 impacting your relationships?
23 A Yeah. So my whole family knows about the situation, my
24 husband. It was causing a lot of stress in our
25 relationship. Like I said, I was just avoiding being home

1 alone. You know, it was a constant, you know, reminder
2 getting these messages.
3 Q And you had just gotten married, correct?
4 A Yeah, on October 4th.
5 Q So this was happening while you got married.
6 A Yes.
7 Q Now, you'd spoken to the police previously. At this point
8 why had you not gone to the police again?
9 A Why hadn't I?
10 Q Yeah.
11 A I didn't understand the legal options I had at this point.
12 Q Were they helpful the first time that you came out -- or
13 that they came out when he showed up at your house?
14 A I was comforted to know it was on the record, but I didn't
15 know, you know, what my next steps were or options were at
16 that point.
17 Q All right. So would it be fair to say you didn't think
18 they'd do anything if you called again?
19 A Right. And like I said, I was worried that by, you know,
20 doing a no trespassing or something like that it would
21 confirm where I lived, and I still wanted to keep that
22 unknown.
23 Q Sure.
24 A Unconfirmed.
25 Q Now, at this point in November, had he been to your house

1 again any other times to your knowledge?
2 A Not to my knowledge in November.
3 Q All right. Messages at this point continue afterwards.
4 They continued to December, and had there been any
5 physical contact in December of 2024?
6 A Yes. So on December 21st he came to my house in Lake Orion
7 again.
8 Q About what times did he come to your house?
9 A It was around noon.
10 Q And were you home?
11 A Yes, I was home.
12 Q Was anyone with you?
13 A My husband was home also.
14 Q Tell the jury what happened.
15 A So we heard somebody knocking on the door. My husband and
16 I heard somebody knocking on the door. So we went into
17 our bedroom because you can see the front porch from my
18 bedroom window. So we both looked out the door. We
19 recognized it as Fox, the person knocking as Fox. At that
20 point, you know, my husband got his gun out. We called
21 the police again. The knocking continued, so, you know,
22 knocking, wait, knocking, wait, knocking, wait, and this
23 continued for about 15 --
24 Q Could you hear him say anything?
25 A No.

1 Q You said continued for 15 minutes. It's your testimony
2 the defendant stood on your porch for 15 minutes while no
3 one answered the door.
4 A Correct.
5 Q And he repeatedly knocked for all 15 minutes.
6 A Yes.
7 Q Did you guys say anything through the door to him?
8 A No, we did not.
9 Q All right. Did the police ultimately come after your
10 husband called?
11 A Yes, the police did come.
12 Q And do you know if defendant was still at the house when
13 the police arrived?
14 A He was not. We had seen him walk away from the house and
15 then down the dirt road.
16 Q Did you see if he had any items on him or anything of that
17 sort?
18 A We didn't see anything.
19 Q Or what his general demeanor was like?
20 A We didn't notice anything out of the ordinary.
21 Q At that point what was your biggest concern with him
22 showing up there?
23 A At that point I was very scared because I had made it
24 clear that I did not want contact and he came to my home
25 again.

1 Q I guess putting it into perspective, prior to him coming
2 to your house these two times this year, how many years
3 had it been since you physically had seen him?
4 A I would have seen him at, like, high school graduation in
5 2015.
6 Q So this person that you hadn't seen in nearly ten years,
7 barely spoken to, had come to your home.
8 A Yes.
9 Q When the police came what happened? You talked to
10 officers?
11 A Yes. So there were a few different officers. So I talked
12 to them, explained the past history. So when they walked
13 up to the door, that was the first time I'd opened it
14 since he was there, and when they walked up there was a
15 letter on the front porch. So the police had picked that
16 up and took that into evidence.
17 Q Was that letter there prior to the defendant being on your
18 porch?
19 A Not that I'm aware of.
20 Q All right. Notice anything else on the porch?
21 A No.
22 Q Did you give the police officers screenshots or copies of
23 all the messages you'd been receiving from defendant?
24 A Yes.
25 Q And it's fair to say that it's probably more than the

1 messages that you just looked at today in court.
2 A Yes.
3 Q Would you estimate how many messages you got a day?
4 A I don't know if estimating per day would be good, but --
5 Q Yeah. If you can't do a number, that's okay. I just want
6 to be accurate, but was it almost every day that you got
7 messages?
8 A It became more frequent over the two years. So it started
9 off as maybe once every six months or so, and then towards
10 November you can see it's almost every single day.
11 MR. PASKULOVICH: Just one moment.
12 THE COURT: Okay.
13 BY MR. PASKULOVICH:
14 Q Had you ever gotten communications or gifts from the
15 defendant via any other means? Had he ever sent things to
16 other locations or gone to other locations?
17 A Yes. So after he came to my house in June of last year,
18 he left and went to my parents' house, and they live in
19 Attica. So he had left a handwritten letter, some
20 flowers, a bracelet, and I think, like, a kaleidoscope or
21 something like that.
22 Q And did you see those items that were left there?
23 A Yes, I did.
24 Q And in any of the messages or conversations -- not
25 conversations because it was just the defendant. Any time

1 defendant was sending you messages, did he acknowledge
2 leaving you any of those items or going to your parents'
3 house?
4 A Yes.
5 Q Did your family, this is your parents, have any sort of
6 relationship with or knowledge of the defendant otherwise
7 him being the person that would not stop contacting you?
8 A They had met him when he came to my house in high school
9 in 9th grade, so that would have been 2011, 2012.
10 Q And that was just one time he came to your house?
11 A That's what I remember was the one time.
12 Q Was it to hang out, or you said school project?
13 A Yeah, it was for a school project.
14 Q Basically what I'm trying to figure out, was it an
15 unremarkable visit? Was there anything special about it,
16 or was it literally just at your house one time?
17 A Yeah. He came to my house. My best friend was there
18 also. She was in the project with us. My parents were
19 there.
20 Q So no reason to be at your parents' house.
21 A No.
22 Q Any other instances like that where you received items or
23 contact from the defendant during this?
24 A No, no other items.
25 Q So after December when he came to your house, forwarded to

1 police, did you receive any more contact from the
2 defendant?
3 A Yes.
4 Q And when did that -- when did you receive that contact?
5 And if you don't know the exact date, that's okay.
6 A So I guess can I correct myself in saying I received it?
7 Q Yeah.
8 A So my parents received messages from him on Facebook after
9 that, but I did not receive it myself.
10 Q Okay. And those messages were shared with you.
11 A Yes.
12 Q Had you seen the defendant at all since you contacted
13 police in December or had any interactions with him?
14 A Only at the PPO trial, but that was over Zoom.
15 Q Tell us a little bit about that.
16 A So I applied for a Personal Protective Order in December
17 after he came to my home the second time. The hearing --
18 the initial hearing was in January, and I was granted the
19 Personal Protective Order for a year.
20 Q That was in the Oakland County Circuit Court?
21 A Yes. It was Judge Costello.
22 Q Okay. And did you have to see the defendant at that
23 hearing?
24 A Only through Zoom.
25 Q Okay. Was there any interaction between you?

1 A Yes. So he cross -- or examined me, asked me questions
2 during that.
3 Q So he personally asked you questions.
4 A Yes.
5 Q And was there anything that stuck out to you that was said
6 in regard to this incident?
7 A He was mostly asking, you know, why I didn't report it
8 sooner. He asked about the music that he had sent me.
9 Q Had he sent music?
10 A Yes.
11 Q Was it through Facebook, those accounts that you looked
12 at?
13 A Yeah. So there were links, some to, like, YouTube.
14 Q Okay. What else, if anything?
15 A Nothing else is sticking out to me right now.
16 Q Sure. Now, that was the original hearing.
17 A Yes.
18 Q Okay. Was there another hearing after that?
19 A Yes. So he filed a motion to terminate the PPO, and that
20 hearing, if I remember right, was in March.
21 Q March of 2025?
22 A Yes.
23 Q Okay. And was he present at the hearing?
24 A Yes.
25 Q Did he get to talk to you or cross-examine you again?

1 A No, not at that time.
2 Q All right. Was he able to make any statements about the
3 incident at that hearing?
4 A No. The judge didn't grant the motion almost immediately.
5 So there wasn't much conversation after that point.
6 Q While you were at those hearings, did the defendant state
7 anything about this case?
8 A It was brought up in the first hearing that there was a
9 charge, a stalking charge, but we didn't talk about this
10 case at that moment.
11 Q Fair enough. How did it make you feel having to see the
12 defendant, although virtual?
13 A Very stressed out. I was very nervous, also a little
14 scared because I didn't know, you know, how it was going
15 to go.
16 Q Was it uncomfortable for you that he got to personally ask
17 you questions?
18 A Yes.
19 Q And what about that made you uncomfortable?
20 A I didn't know what he was going to ask, you know, and it
21 was quite a bit of questioning, a lot of questions.
22 Q Now, when you went to that hearing, that was for the PPO,
23 but going back to December when you reported this incident
24 the final time, was your purpose to request charges? Was
25 it just to get him to stop? What was -- how did that go

1 down? Did the police ask you if you wanted charges? Did
2 you request them? What was the whole --
3 A I didn't request them, but I did tell them that I wanted
4 this to stop, you know. Yeah, because I had told them
5 about all the previous behavior and the previous police
6 report. I wanted it to be documented that this was still
7 happening.
8 Q And when you found out this case was set for trial, how
9 did that make you feel?
10 A Also very uncomfortable, nervous, scared for this.
11 Q Because now the PPO hearing and this hearing would be one
12 of the few times defendant is actually seeing you in
13 person besides at Walmart, correct?
14 A Yes.
15 Q So two times at your house, Walmart, and then at the two
16 hearings.
17 A Yes.
18 Q Now, has contact stopped at this point?
19 A Yes.
20 Q When was the last time -- did initiation of this case
21 cease all contact from him?
22 A Yes.
23 Q Is there anything you think that I am forgetting to ask
24 about that's important for the jury to know?
25 A I think that's it.

1 Q All right. Thank you.

2 THE COURT: Thank you.

3 This may be a good time to take a break. It's

4 12:20. I know that we had a very late start, but we're

5 going to take a brief break, and you can go grab some

6 quick lunch if you choose to do so. You're free to go

7 about your business. You can stay here if you'd like to

8 as jurors. But, again, I would just remind you if you do

9 go out, you're not to discuss this case with anyone, and

10 if anyone tries to discuss the case with you, please tell

11 them to stop, tell them you're a juror, and report the

12 incident to myself and/or my staff.

13 It's 12:20. If we come back at 1:15, I think

14 that gives everybody plenty of time to come back. So I'm

15 going to have you step down now and we'll have you come

16 back for cross-examination at 1:15, okay? Thank you.

17 All right. All rise for the jury, and if you

18 just want to leave your notepads on your seat, we will

19 make sure that no one sees them.

20 And you can either leave if you've got things to

21 -- if you want to go back in the jury room and just hang

22 out, if you want to go get your belongings and then leave,

23 that's fine. I'm just going to have everyone stay here

24 until the jury leaves.

25 (At 12:20 p.m., jurors exit courtroom.)

1 THE COURT: Yes, free to leave.
2 Please be seated. Yes, you can step out and
3 we'll see you back at 1:15. Thank you.
4 I think I counted all the jurors. Okay. That's
5 all of them? Okay. If you just want to shut that door,
6 that'd be great, Caitlin. Thanks.
7 Okay. I just wanted to mention to Mr. Parton we
8 probably took a break at a good time for you so that based
9 upon the questions asked and the answers answered that you
10 can write down additional questions if you choose to do
11 so. And then also we can take a break if necessary
12 whenever you deem necessary to ask follow-up questions,
13 but I will at the end of Mr. Downer asking the questions
14 that you've written down, you can take a break. Actually,
15 you're in a pretty good position because you can be
16 listening to these and writing down questions, follow-up
17 questions, as you go along, okay? So we'll give you an
18 opportunity to do that as well.
19 Do you have any questions about that and what
20 that procedure looks like?
21 THE DEFENDANT: No, your Honor. The only --
22 well, I guess, yes. Okay. So if I want to call him back
23 at any point while he's asking questions, I can call him
24 back to add a follow up --
25 THE COURT: I think what would be more

1 efficient, it would probably be better to ask -- to just
2 write those questions down, okay? So based upon that, you
3 have another question that you want to ask.
4 THE DEFENDANT: Right.
5 THE COURT: And write it down, put it in
6 writing, and if you need to slow down so you need time to
7 write things down, just tell Mr. Downer to slow things
8 down. Then you can ask those follow-up questions, okay?
9 THE DEFENDANT: Okay. So if I want to get his
10 attention to give him some follow-up questions, should I
11 just --
12 THE COURT: No. No. No. No. What I'm saying
13 is the follow-up questions you should put in writing,
14 okay?
15 THE DEFENDANT: Yes. Correct.
16 THE COURT: Follow-up questions in writing, and
17 then we will address those after he asks all those other
18 questions.
19 THE DEFENDANT: After he asks all of the --
20 THE COURT: Yeah.
21 THE DEFENDANT: -- first questions and -- okay.
22 THE COURT: Yeah.
23 THE DEFENDANT: I'm sorry. I just want to make
24 sure --
25 THE COURT: No, that's okay. That's why I'm

1 explaining it because it is a little bit unusual and I
2 want to make sure that you understand and that you have a
3 chance to ask any and all questions that you want, okay?
4 THE DEFENDANT: The only issue we're probably
5 going to have is him trying to read my handwriting.
6 THE COURT: Oh, okay.
7 THE DEFENDANT: We already discussed that once.
8 THE COURT: Okay. All right. Well, you can
9 review that with him. We've got lunchtime. So if you
10 want to review it with him, if you want to take a lunch
11 break, however you want to handle that.
12 Anything further that needs to be discussed
13 before we take a break?
14 MR. PASKULOVICH: Your Honor, may I look at the
15 exhibits?
16 THE COURT: Yes, of course.
17 (At 12:23 p.m., court recessed.)
18 (At 1:23 p.m., court reconvened.)
19 THE COURT: Okay. Recalling Parton, 24-7808.
20 Your appearances, please.
21 MR. PASKULOVICH: Good afternoon, your Honor.
22 Kyle Paskulovich appearing on behalf of the People.
23 THE DEFENDANT: Good afternoon, your Honor. I'm
24 Fox Parton appearing on behalf of myself.
25 MR. DOWNER: And Harold Downer as standby

1 counsel for Mr. Parton.

2 THE COURT: Thank you. And we're ready to

3 proceed, I assume, and when we last left off, we were

4 ready to have cross-examination of Ms. Kennard.

5 So with that, are all our jurors here? If you

6 want to bring them in, that'd be great, and you can bring

7 Ms. Kennard in and she can take the stand.

8 Ms. Kennard, if you want to take the stand

9 again, that'd be great. We'll bring the jurors in.

10 COURT CLERK: All rise.

11 (At 1:26 p.m., jurors enter courtroom.)

12 THE COURT: Please be seated.

13 All right. And when we last left off, the

14 prosecution had finished direct examination. Now the

15 defense is ready for cross.

16 I just want to remind Ms. Kennard, you're still

17 under oath.

18 Okay. Thank you. Go ahead.

19 Oh, I'm sorry. Before we get started with that,

20 I just wanted to explain to the jury that every defendant

21 who's charged with a crime is entitled to bond, and

22 oftentimes there are bond conditions. One of Mr. Parton's

23 bond conditions is to have no contact with Ms. Kennard.

24 So in order to enforce that, we're going to have standby

25 counsel read the questions that have been prepared by

1 Mr. Parton, and then he's going to ask follow-up questions
2 as well if Mr. Parton requires him to do so. So just to
3 explain a little bit about that.
4 Go ahead, Mr. Downer.
5 MR. DOWNER: Thank you, your Honor.
6 CROSS-EXAMINATION
7 BY MR. DOWNER:
8 Q Good afternoon. What is your profession?
9 A I'm an engineer.
10 Q Did you ever delete any Facebook conversations between
11 yourself and Mr. Parton?
12 A No.
13 Q Do you live in Lapeer?
14 A No.
15 Q Do you go to the Walmart in Lapeer regularly like he does?
16 A Semi regularly.
17 Q How far of a drive is that for you?
18 A About 35, 40 minutes.
19 Q You said you saw him there in October?
20 A Yes.
21 Q Did he have groceries in his hands?
22 A He had bags in his hands.
23 Q Why would anyone assume when you drive past three other
24 Walmarts to the one nearest where Mr. Parton lives that
25 you seeing him means he followed you there?

1 MR. PASKULOVICH: Your Honor, I'd object. Form
2 of the question. It's assuming something of the witness.
3 THE COURT: Assuming facts not in evidence?
4 MR. PASKULOVICH: Yes, your Honor.
5 THE COURT: I think that is true. I will
6 sustain that because I think she specifically stated that
7 she didn't think he followed her.
8 MR. PASKULOVICH: That's correct. Thank you.
9 BY MR. DOWNER:
10 Q Can you share for the Court where in all this you were
11 threatened?
12 A I felt threatened when he came to my home. I felt
13 threatened when I continued to receive messages after I
14 asked for no contact, and I felt threatened when he tried
15 to contact me in public after I asked for no contact.
16 Q Can you describe a threat that was ever made to you by any
17 of these accounts alleged to be Mr. Parton?
18 A Could you repeat that, please?
19 Q Yes, ma'am. Can you describe a threat that was ever made
20 to you by any of the accounts alleged to have been
21 Mr. Parton?
22 A I wouldn't say a threat was made, but I felt threatened.
23 Q What specifically about Mr. Parton and his behavior and
24 how he conducted himself across proceedings makes you
25 afraid?

1 A The repetitiveness and the lack of respect for my
2 boundaries made me feel afraid.
3 Q Do you know that all of those accounts belonged to
4 Mr. Parton or just presumed that they're his?
5 A I thought they were his based on the profile pictures,
6 some of the names, and the content and style of the
7 messages.
8 Q You have credentials on your LinkedIn that suggest an
9 interest in genetic engineering as well as discreet
10 simulation. Can you talk a bit about that for me?
11 MR. PASKULOVICH: Objection to relevance.
12 THE COURT: How is that relevant?
13 THE DEFENDANT: Sorry. I didn't want to talk
14 with water in my mouth.
15 I think it's relevant to demonstrating the
16 capabilities of the alleged victim.
17 THE COURT: I don't understand what you mean.
18 THE DEFENDANT: Towards demonstrating the
19 competency and intellectual capability of the alleged
20 victim as opposed to the narrative of her being
21 vulnerable, which is pushed by the prosecution.
22 THE COURT: I will sustain the objection. It
23 does appear to be not relevant to the issue at hand.
24 BY MR. DOWNER:
25 Q You said you showed your husband pictures of Mr. Parton

1 before June and that's how he recognized Mr. Parton later.
2 So you had showed him pictures of Mr. Parton in June?
3 A He had seen the pictures previously to June.
4 Q Have you ever been asked to conceal or exaggerate the
5 truth even when you knew it wasn't the right thing for the
6 sake of your work like pushing products that could cause
7 problems you didn't actually want to take responsibility
8 for?
9 MR. PASKULOVICH: Objection to relevance again.
10 THE COURT: How is that relevant?
11 THE DEFENDANT: I don't have an argument for
12 that. I forgot that one was even in there.
13 THE COURT: Okay. Sustained.
14 You don't have to answer that question.
15 BY MR. DOWNER:
16 Q You handwrote in your written statement that I was at your
17 house at 12:00 a.m. and stated I had been knocking at your
18 door 20 minutes and then typed separately for the PPO
19 statement you gave later that I was at your house 12:30
20 a.m. and not 10 to 15 minutes. Is that correct?
21 A I did, and I corrected that with the PPO judge at the time
22 that it was 12:00 p.m.
23 Q Then why was the police call made in the afternoon and the
24 dashcam video shows it was daylight?
25 MR. PASKULOVICH: Your Honor, my objection would

1 be question's argumentative. She answered she corrected
2 it at the court proceeding, and that's continuing to
3 assume that she would have answered a different way.
4 THE DEFENDANT: I agree. I think that's just an
5 issue of the fact that I can't dynamically follow up,
6 because those questions were --
7 THE COURT: Okay. I'll sustain the objection.
8 Thank you.
9 You don't have to answer that.
10 BY MR. DOWNER:
11 Q Did you really see Mr. Parton through your window December
12 21st?
13 A Yes.
14 Q He saw a big window in the front of the house in that
15 video. That's the only window you could have seen someone
16 through at the front door. You both just sat there
17 watching me through the window without me noticing you
18 were there for 20 minutes; is that correct?
19 MR. PASKULOVICH: Objection. It's kind of
20 defendant testifying in the form of questions.
21 THE DEFENDANT: This was supposed to be -- it
22 was supposed to be after foundation was laid for the
23 footage to have actually been viewed before that question
24 would have been asked. It references --
25 THE COURT: Okay. So you don't want that

1 question asked at this point.

2 THE DEFENDANT: It should be asked later, yeah.

3 THE COURT: Okay. I will -- you don't have to

4 answer that, then.

5 MR. DOWNER: If I could have a moment.

6 THE COURT: Sure.

7 MR. DOWNER: Thank you, your Honor.

8 BY MR. DOWNER:

9 Q What was the extent of yours and Mr. Parton's relationship

10 in high school?

11 A We were acquaintances. We were friendly. We were in a

12 group project, that group project that I mentioned

13 earlier, together.

14 Q He was never one of the only two people that bothered to

15 show up at your 8th grade birthday party?

16 A No.

17 Q And according to you, you and him never spoke at all

18 throughout high school?

19 A No. That would be -- that's not accurate.

20 Q Did you ever send Mr. Parton electronic communications

21 instructing him on what you wanted him to say to the

22 police?

23 A No.

24 Q You claim Mr. Parton only went to your house once for a

25 school project? You deny having any contact through high

1 school?
2 A He was at my house for that one time, but we had other
3 contact with high school.
4 Q Did you ever send Mr. Parton electronic communications
5 instructing him on how to contact you and what to say?
6 A Not that I remember in the last 10, 12 years.
7 Q Did you ever send him electronic communication telling him
8 your address?
9 A No.
10 Q You said at one point -- at one point your version of the
11 story is that you received electronic communications where
12 Mr. Parton professed his love to you over nearly three
13 years before saying anything. If that were true, why
14 would you treat someone like that instead of just talking
15 to them?
16 A So as I said earlier, I was afraid that by responding or
17 rejecting his communication that it would cause escalation
18 in his behavior.
19 Q In your version of the story you make a single message
20 requesting to stop contact after two to three years. How
21 long after -- how long after your husband first called the
22 police would this have happened?
23 A So the first time he called the police was in June of
24 2024, and then I asked for no contact in October of 2024.
25 Q So police were initially contacted four months before you

1 alleged to have ever established no contact?
2 A Yes.
3 Q When you accepted contact with the defendant over the
4 course of multiple years, why did you take so long to
5 block him in your version of the story?
6 A That's -- like I said, I was worried that the blocking
7 would be perceived as rejection and it would escalate his
8 behavior.
9 Q In your claim -- and you claim you were never friends at
10 all?
11 A We were friendly but I would not say we were close
12 friends.
13 Q If you kept receiving messages between June and December,
14 why didn't you report anything sooner if you were afraid?
15 A I wasn't aware of my legal options at the time.
16 Q What are you specifically afraid of?
17 A I was afraid that he would continue to come to my house
18 and afraid that he would continue to make contact.
19 Q You said you installed security cameras after June 27th.
20 Why is there no camera footage of Mr. Parton allegedly
21 visiting your home on December 21st?
22 A The security camera was dead because it was cold out, so
23 the battery had died.
24 Q Have you ever expressed forgiveness towards the defendant?
25 A Not that I remember.

1 Q Why not?
2 A I don't know what the -- I guess I didn't feel I had a
3 reason to.
4 Q Are you diagnosed or have you been evaluated for an
5 anxiety disorder?
6 MR. PASKULOVICH: Objection. That's an
7 inappropriate question to ask the victim, and it's
8 irrelevant.
9 THE DEFENDANT: I don't see how it's not
10 relevant because we're talking about -- under the terms of
11 the statute it talks about how in order to meet it, a
12 reasonable person must have been afraid or feel harassed
13 and the individual must have actually felt that way. If
14 someone has an anxiety disorder, that pivots everything
15 away from the reasonable person standard, not to any fault
16 of the individual, just a heightened sense of anxiety and
17 fear which is documented as part of the condition, which
18 might not be attributable to other things that the
19 individual claims that fears it's attributed to.
20 THE COURT: As it relates to the element of the
21 offense itself?
22 MR. PASKULOVICH: Your Honor, I think it's clear
23 a reasonable person standard that requires the jury -- the
24 jury instructions require us to prove that a reasonable
25 person would feel that way and that the victim actually

1 did feel that way as the result of the defendant's
2 conduct. I think that he explored (inaudible) without
3 asking what the diagnosis is and personal health and
4 information.
5 THE COURT: I will sustain that objection.
6 You don't have to answer that.
7 BY MR. DOWNER:
8 Q When people compliment you or treat you as if you're
9 special, does it scare you, or is this just the defendant
10 that scares you?
11 MR. PASKULOVICH: I'd object to this again.
12 It's -- the question as asked is it just the defendant
13 that scares you, about compliments and -- this is the
14 defendant asking -- this is an opportunity to ask the
15 victim questions he wants the answers to. He's not making
16 any of the allegations in here more relevant -- or more
17 likely that it occurred. I don't think it's relevant to
18 this proceeding.
19 THE COURT: How is it relevant?
20 THE DEFENDANT: I apologize, your Honor, because
21 I was trying to write a follow up as he was doing it. I
22 don't even know what -- what was the question?
23 MR. DOWNER: If I may, your Honor.
24 THE COURT: Sure.
25 THE DEFENDANT: I'm trying to think how I would

1 word it. You know, it's obvious to everyone here I'm not
2 a lawyer.
3 If -- shoot. I lost my train of thought
4 already. I apol -- I got to look at the question.
5 THE COURT: Okay.
6 THE DEFENDANT: Because, again, the statute
7 revolves around fear. So we're trying to identify what is
8 it that -- a fear of my conduct specifically or the
9 conduct which is alleged. I suppose that's trying to get
10 to the root of can you identify is it the defendant that
11 actually makes you afraid or is it this behavior that
12 makes you afraid? I'm not sure.
13 THE COURT: So that particular question I'm
14 going to sustain the objection. There are other ways to
15 ask what I think you're trying to ask.
16 THE DEFENDANT: Thank you, your Honor.
17 BY MR. DOWNER:
18 Q Have you ever claimed Mr. Parton followed you to a Walmart
19 in the town where he resides, not even the third closest
20 Walmart to where you live?
21 A No.
22 Q Why were you at the Walmart that day?
23 A I was there with my mom, who lives in Lapeer County.
24 Q Are you aware that's the nearest shopping center to where
25 Mr. Parton lives?

1 A I wasn't aware.

2 Q On June 27th you spoke to police on the scene. What did

3 you tell at that point?

4 A Could you clarify?

5 THE COURT: Do you want him to repeat the

6 question?

7 THE WITNESS: I just clarify what he means by

8 what did I tell them.

9 MR. DOWNER: If I can have a moment.

10 THE COURT: Sure.

11 MR. DOWNER: Mr. Parton will withdraw that

12 question.

13 THE COURT: Okay.

14 BY MR. DOWNER:

15 Q Did you submit any screenshots to the police on June 27th?

16 A No.

17 Q Have you ever apologized to the defendant or any account

18 claiming to be the defendant for any hard feelings?

19 A Not that I remember.

20 Q What makes you more comfortable dealing with the defendant

21 through the legal system than talking to him directly or

22 asking someone else to talk to him if you suspect the

23 communication came from him?

24 MR. PASKULOVICH: Your Honor, I'd object to the

25 form of the question. I'm not really following what that

1 is. I think compound.

2 THE COURT: Compound question?

3 Could you read it again?

4 MR. DOWNER: What makes you more comfortable

5 dealing with the defendant through the legal system than

6 talking to him directly or asking someone else to talk to

7 him if you suspect the communication from him.

8 THE COURT: I'll overrule that objection.

9 You can answer that.

10 THE WITNESS: Okay. I was afraid to communicate

11 with him personally, and when I did communicate with him

12 personally, my wishes were not respected.

13 BY MR. DOWNER:

14 Q Have you ever considered whether the person contacting you

15 may have had similar challenges in their life which may

16 have provoked them to seek comfort in your company?

17 A That's not something that I considered.

18 Q Are you aware that if your description of events is true,

19 leaving someone unblocked who all's as it (sic) they are

20 in love with you or may have some complex psychological

21 attachment to you rooted in trauma, taking no action to

22 communicate with them or clarify your point to them,

23 allowing them to fawn for you, then throwing them away

24 roughly months or years later without explanation may

25 portray you as cruel?

1 MR. PASKULOVICH: Your Honor, I'm going to
2 object. This is the defendant using the judicial process,
3 cross-examination to try to convey his message and to get
4 his point across to the victim. It's exactly what he's
5 trying to do and I don't think it's proper questioning.
6 THE COURT: It is not a proper question. I will
7 sustain the objection.
8 BY MR. DOWNER:
9 Q Why are you allegedly afraid to have a civil discussion
10 with the defendant?
11 A I'm afraid because I don't know what would happen. I'm
12 afraid that it could escalate.
13 Q In the two, three, nine, eleven years you claim to have
14 been stalked by the defendant, did you ever take any
15 action to block or make clear you wanted no contact before
16 the alleged message on October 10th?
17 A Could you repeat that, please?
18 Q Yes. In the two, three, nine, eleven years you claim to
19 have been stalked by the defendant, did you ever take any
20 action to block or make clear you wanted no contact before
21 the alleged message October 10th?
22 A No. That was the only contact I've had with him.
23 Q Did you ever inform social media accounts that were
24 contacting you you were in a long-term relationship?
25 MR. PASKULOVICH: I'll object to relevance.

1 THE COURT: How is that relevant?

2 THE DEFENDANT: It's just the polite thing to

3 do.

4 THE COURT: Okay. I'll sustain the objection.

5 BY MR. DOWNER:

6 Q Did you ever explain yourself or your silence at all?

7 A Could you clarify to who I was, like, explaining that to?

8 THE COURT: I think she's saying the question is

9 vague. If you want to just clarify that with Mr. Parton.

10 BY MR. DOWNER:

11 Q As to any of the accounts that were contacting you that we

12 talked about today, did you explain your silence or no

13 contact to them?

14 A To those accounts? No.

15 Q And you also never blocked or told these accounts to stop

16 contacting you all that time either?

17 A Not before October 10th.

18 Q Do you respect the feelings of the defendant?

19 THE COURT: Oh, yes?

20 UNIDENTIFIED MALE: Could you have him speak up?

21 THE COURT: Speak up?

22 UNIDENTIFIED MALE: I'm having a hard time.

23 THE COURT: Yes, thank you. Thank you for

24 indicating that.

25 BY MR. DOWNER:

1 Q Do you respect the feelings of the defendant?
2 A Yes.
3 MR. DOWNER: May I have a moment, your Honor?
4 THE COURT: Yes. Take as much time as you need.
5 If the three of you could approach for a moment.
6 MR. PASKULOVICH: Yes, your Honor.
7 (At 1:57 p.m., an off-the-record discussion was
8 held at the bench.)
9 THE COURT: Okay. At this point in time there
10 are two 911 calls. Normally the prosecutor would put
11 these in evidence, and he was planning on doing so, is my
12 understanding, through his case in chief. However,
13 defendant has asked that they be played right now. The
14 two 911 calls, that being in June and December, the People
15 are stipulating that they be played now so that the
16 defendant can ask some questions of this witness regarding
17 those 911 calls.
18 So the first one we're stipulating -- are we
19 marking these as an exhibit, then?
20 MR. PASKULOVICH: Yes. Can be People's Proposed
21 19 and 20.
22 THE COURT: Okay.
23 MR. PASKULOVICH: And 19 would be from June 27,
24 2024, and then 20 would be from December 21, 2024.
25 THE COURT: Based upon the stipulation, Exhibits

1 19 and 20 will be admitted.

2 (At 2:02 p.m., People's Exhibit nos. 19 and 20

3 admitted.)

4 THE COURT: And we're going to be playing -- my

5 understanding we're going to be playing Exhibit no. 19

6 first. That's the 911 call from June. So we're going to

7 have to listen to that.

8 MR. DOWNER: I apologize.

9 THE COURT: That's okay.

10 MR. DOWNER: And, your Honor, this would be, I

11 believe, Exhibit 19, the June 911 call.

12 (At 2:02 p.m., People's Exhibit nos. 19 and 20

13 played in court.)

14 THE COURT: Can we turn that down just a little?

15 Okay. Based upon that, if you have some

16 questions, Mr. Parton, you wanted to ask through your

17 standby counsel, that'd be great.

18 THE DEFENDANT: Yes, your Honor.

19 THE COURT: Mr. Parton, do we need to take a

20 break?

21 THE DEFENDANT: We have a handful of questions

22 ready at this time.

23 THE COURT: Okay.

24 MR. DOWNER: Thank you, your Honor.

25 THE COURT: No problem.

1 BY MR. DOWNER:
2 Q How did your husband know in one of the 911 calls that Mr.
3 Parton at one point lived with his grandparents in
4 Rochester Hills when there's no evidence to that and he
5 has no memory of telling you something like that and that
6 information is not available on White Pages since I don't
7 recall -- since he doesn't recall formally changing his
8 address --
9 THE COURT: You're having a hard time hearing?
10 UNIDENTIFIED MALE: Yeah.
11 THE COURT: He can't hear you. Why don't you
12 repeat the question.
13 MR. DOWNER: Yes, your Honor.
14 BY MR. DOWNER:
15 Q How did your husband know that Mr. Parton -- in one of the
16 911 calls that Mr. Parton at one point lived with his
17 grandparents in Rochester Hills when there's no evidence
18 that you were told that and Mr. Parton has no memory of
19 telling you that and it's not available on White Pages
20 since he doesn't recall formally changing his address?
21 How is that known about him?
22 MR. PASKULOVICH: Your Honor, asking the witness
23 to answer how another person knows something, I don't
24 think she can answer that.
25 THE DEFENDANT: I mean, it's her husband and

1 they appear to share a lot of information. I just think
2 it's very odd that none of the screenshots have me saying
3 anything like that or I don't remember saying anything
4 like that. There's no reason anybody should know that
5 about me.
6 THE COURT: Okay. I will sustain the objection
7 since that's knowledge of somebody else, not this witness.
8 Go ahead. You can ask another question.
9 BY MR. DOWNER:
10 Q In the June call your husband described the timeline as
11 being a couple months from June. How do you explain that
12 in contrast to your earlier claims of two years, three
13 years happening since 2014?
14 MR. PASKULOVICH: Your Honor, objection. She
15 can't answer for her husband.
16 THE COURT: I don't think that was the question,
17 though.
18 Can you read the question again? He said, how
19 do you explain.
20 MR. PASKULOVICH: I'll withdraw my objection if
21 so.
22 THE COURT: Do you want him to repeat the
23 question again?
24 THE WITNESS: Yes, please.
25 BY MR. DOWNER:

1 Q In the June call your husband described the timeline as
2 being a couple of months from June. How do you explain
3 that in contrast to your earlier claims of two years,
4 three years happening since 2014?
5 A I guess I can't explain why he said that.
6 Q Why did your husband claim you had received messages
7 describing weapons? Were there screenshots you submitted
8 in reference to a weapon?
9 A I did not submit any screenshots in reference to a weapon.
10 Q Was it your husband that made the decision to refer the
11 issue to police, or did you tell him to call the police
12 for you?
13 A I asked him to call the police for me.
14 MR. DOWNER: If I may have one quick moment,
15 Judge.
16 THE COURT: Yes.
17 BY MR. DOWNER:
18 Q Did you ever tell your husband Mr. Parton mentioned
19 weapons to you?
20 A No.
21 Q Did you tell your husband that Mr. Parton had been
22 contacting you for months prior to June?
23 A I told him about the messages, which would have been
24 multiple years before that, so not months.
25 MR. DOWNER: Thank you, your Honor. If I may

1 have one more time.

2 THE COURT: Are there any more questions

3 specifically as it relates to the 911 tapes?

4 MR. DOWNER: No, your Honor. And if we could

5 have a brief recess.

6 THE COURT: Yes. So we're going to take a brief

7 recess. When I say "brief," probably about ten minutes to

8 give Mr. Parton some time to see if he needs any

9 additional questions asked. So we'll all rise for the

10 jury.

11 If you could just leave your notebooks right on

12 your seat, that would be great.

13 (At 2:22 p.m., jurors exit courtroom.)

14 THE COURT: You can step down, too. We're in

15 recess.

16 So just let us know. I said ten minutes, but

17 take the necessary time based upon those new questions,

18 although I know Mr. Parton's been writing things down as

19 the answers have been coming in and follow-up questions.

20 MR. DOWNER: Yes, he has, your Honor. If it's

21 all right with the Court, we'll go grab a conference room.

22 THE COURT: Yes, absolutely.

23 MR. DOWNER: Thank you, Judge.

24 (At 2:23 p.m., court recessed.)

25 (At 2:57 p.m., court reconvened.)

1 THE COURT: Okay. Recalling People versus
2 Parton, 24-7808. Your appearances, please.
3 MR. PASKULOVICH: Good afternoon, your Honor.
4 Kyle Paskulovich appearing on behalf of the People.
5 THE DEFENDANT: Good afternoon, your Honor. Fox
6 Parton appearing pro se.
7 MR. DOWNER: Harold Downer, standby counsel for
8 Mr. Parton.
9 THE COURT: Thank you. And we adjourned for
10 about a half hour, maybe a little bit longer, and I'm
11 assuming that all sides are ready to proceed now, and
12 we'll bring the jury in unless there's anything further.
13 MR. PASKULOVICH: Your Honor, People are
14 prepared to proceed.
15 THE DEFENDANT: We're prepared to proceed, your
16 Honor.
17 THE COURT: Okay. You can bring the jurors in.
18 You want to just take the witness stand one more
19 time, please?
20 COURT CLERK: All rise.
21 (At 2:54 p.m., jurors enter courtroom.)
22 THE COURT: Okay. Please be seated.
23 And we'll just acknowledge one more time that
24 you're still under oath.
25 And, Mr. Downer, if you want to ask any

1 follow-up questions. Actually, read any follow-up
2 questions that Mr. Parton has provided to you.
3 MR. DOWNER: Thank you for that clarification,
4 your Honor.
5 BY MR. DOWNER:
6 Q You said the six months between June and December you took
7 no action because you didn't know your options. Did the
8 police not give options or directions when you spoke to
9 them on June 27th?
10 A We had discussed the no trespassing, which I explained I
11 didn't want to do at the time because my address wasn't
12 confirmed. Other than that, I don't remember any other
13 options.
14 Q Are you aware of the officers issuing a search warrant
15 against Facebook?
16 A Yeah, I was aware of that.
17 Q Have you reviewed any of the messages in the return from
18 that search warrant request?
19 A No, I have not seen it.
20 Q So you're not aware of anything that is or is not in that
21 return.
22 A That's correct.
23 Q You stated that the defendant -- that you didn't think the
24 defendant followed you to Walmart today; is that correct?
25 A Correct. I don't think he followed me there.

1 Q You filed a statement of facts with your request for a
2 Personal Protection Order, or PPO?
3 A Yes.
4 Q In that statement of facts for the PPO, didn't you say you
5 were scared he followed you to Walmart and would continue
6 to follow you?
7 A Without the document in front of me, I don't want to
8 misquote myself.
9 Q If you reviewed that document, would that refresh your
10 recollection?
11 A Yes.
12 MR. DOWNER: If I may approach, your Honor?
13 THE COURT: Yes.
14 BY MR. DOWNER:
15 Q You may review it. Don't read it out loud.
16 A Oh, oaky.
17 Q Just put it facedown.
18 Is your recollection refreshed?
19 A Yes.
20 Q Would you like me to repeat the question?
21 A Yes, please.
22 Q In that statement didn't you say you were scared he
23 followed you to Walmart and would continue to follow you?
24 A So what I wrote is that I was scared that he followed us
25 out of the Walmart, not that he followed us to the

1 Walmart.

2 Q And so you agree with both statements today, then?

3 A Which statements?

4 Q You agree that you don't believe he followed you there but

5 you were afraid he would follow you from there?

6 A Correct.

7 Q Did you report the contact at Walmart -- I believe it was

8 October 19th -- to the police?

9 A I did not.

10 Q Why not?

11 A I didn't know my legal options or, you know -- yeah.

12 Q You said you were afraid the defendant would escalate his

13 behavior, but you also said the conduct went on for two or

14 three years without blocking or making any reports; is

15 that correct?

16 A Correct.

17 MR. DOWNER: And I believe that is all the

18 questions, your Honor. If I may approach.

19 THE COURT: Sure.

20 All right. And any redirect from the People?

21 MR. PASKULOVICH: Just briefly, your Honor.

22 REDIRECT EXAMINATION

23 BY MR. PASKULOVICH:

24 Q You were asked if you respected the defendant and his

25 feelings. Is it particular respect for the defendant or

1 just general respect for people?
2 A I answered about my respect for people in general.
3 Q And you were also asked a question about forgiving the
4 defendant. What did you interpret that to be, forgive him
5 for what?
6 A That's why I answered that, you know, I didn't feel like I
7 needed to forgive him for anything because I don't have,
8 you know, harsh feelings -- you know, I'm not -- I didn't
9 feel like there's anything to forgive him for and I'm not,
10 like, angry about anything from the past.
11 Q In the past several years, has there been any point where
12 you've tried to have the defendant in your life?
13 A No.
14 Q In fact, the opposite, correct?
15 A Correct.
16 Q Have you ever dealt with someone who's engaged in similar
17 behavior?
18 A Could you clarify?
19 Q Have you ever had a similar experience with someone not
20 stopping contacting you to this extent?
21 A No.
22 Q The -- you were asked about security cameras outside your
23 house. You said the batteries died. I'm assuming they're
24 wireless, then?
25 A Yeah, they're wireless.

1 Q And do they die faster in the winter?
2 A Yeah, once, like, below freezing especially.
3 Q There were also some questions about how the defendant's
4 contact or questioning of you made you feel. Does it feel
5 like a continuation of that today?
6 A I mean, I respect the court process and all that, but I do
7 feel, you know, uncomfortable being here and being asked
8 questions.
9 Q You didn't want to come to court today, correct?
10 A Not really.
11 MR. PASKULOVICH: Just one moment, your Honor.
12 BY MR. PASKULOVICH:
13 Q In terms of legal options, your options, talking to the
14 police (inaudible) options, what you could do moving
15 forward, did you find it kind of embarrassing to talk
16 about this whole situation, or were you just -- what was
17 the whole disconnect with the police? Were they not
18 helpful?
19 A No. I guess at the time I didn't know what legal grounds
20 were needed for, you know, a Personal Protective Order or
21 pressing charges or something like that. I just wasn't
22 aware.
23 Q Sure.
24 A And I guess I wasn't -- I didn't feel like I was explained
25 those options well the first time.

1 Q Makes sense. And then the defendant never threatened you;
2 is that correct?
3 A Correct.
4 Q But was it his behavior in messages and what he was saying
5 that you felt to be threatening or just a combination of
6 all the behavior?
7 A It was a combination of the behavior, the repetitiveness,
8 the visiting my home, not respecting what I asked when I
9 asked for no contact.
10 Q And when you say you were concerned it could escalate, was
11 it a fear unpredictable, not sure what he would do or
12 escalate as in he would continue to contact more?
13 A I would say both. I was worried about continued contacts
14 and, you know, I didn't know what would happen, the
15 unpredictableness (sic).
16 Q Sure. Do you have any intention of ever having contact
17 with the defendant again? You have no intention of trying
18 to keep communication? It's been consistent since October
19 when you messaged him.
20 A Correct. That's correct.
21 Q Do you feel -- actually, I have no further questions.
22 Thank you.
23 THE COURT: Thank you. You may step down.
24 Thank you for coming in.
25 (At 3:08 p.m., witness excused.)

1 THE COURT: And you may call your next witness.
2 MR. PASKULOVICH: People call Deputy Hill.
3 THE COURT: Could you please face me and raise
4 your right hand?
5 Do you swear or affirm the information you're
6 about to provide the Court will be truthful, accurate, to
7 the best of your ability, so help you God?
8 DEPUTY HILL: I do.
9 THE COURT: Thank you. Please be seated. When
10 you're comfortable I'm going to ask you to state your full
11 name and spell it for our court recorder and our jurors.
12 THE WITNESS: Sure. Deputy Nicholas Hill, H-I-
13 L-L.
14 THE COURT: Thank you.
15 Go ahead, whenever you're ready.
16 NICHOLAS HILL
17 was called at 3:08 p.m. by the People, sworn by the Court,
18 testified:
19 DIRECT EXAMINATION
20 BY MR. PASKULOVICH:
21 Q Where are you employed?
22 A Oakland County Sheriff's Office.
23 Q What is your position there?
24 A I'm a road patrol deputy in the Township of Orion.
25 Q How long have you been employed in law enforcement?

1 A Law enforcement, a little over nine years, in Oakland
2 County a little over a year.
3 Q Directing your attention to September -- I'm sorry,
4 December 21, 2024, around 12:30 p.m., were you working in
5 your official capacity as a deputy with the Sheriff's
6 Office?
7 A I was.
8 Q And on that date and time do you recall being dispatched
9 to 1145 Bayfield (phonetics)?
10 A I was.
11 Q And what was the nature of that dispatch?
12 A It came out as a possible stalking call. Somebody was at
13 a residence that was unwanted, showed up unannounced, and
14 then they requested deputies to respond.
15 Q When you got that dispatch, did you know anything about
16 this besides that?
17 A No, just what dispatch gave off. They gave off a name of
18 who was outside and then the name of the caller.
19 Q And were you by yourself or with a partner?
20 A I was by myself.
21 Q All right. When you got the call, did you go right to
22 that residence?
23 A I did.
24 Q What happened when you arrived?
25 A When I arrived there was a couple deputies arriving with

1 me in separate cars. We made contact with the caller and
2 her husband, who stated that there had been somebody that
3 had been stalking them at their house recent and just
4 left.
5 Q Do you recall what the caller's name was?
6 A Yeah, Brianna Walters.
7 Q And when you first stated speaking to Brianna, what was
8 her demeanor?
9 A She seemed scared, taken aback by what was going on,
10 uneasy, in my opinion. Doing it for years, it seemed like
11 she really wanted our help and was happy that we were
12 there but still kind of worried about what happened.
13 Q After taking that initial information from them, what, if
14 anything, did you do?
15 A We took the report. So it was reported that the defendant
16 in this case had made the scene, was there for about 20
17 minutes. So I kind of documented that. He left a note, a
18 two-page letter, there for her to read, which they did
19 not. They gave it to me and I ended up just putting it in
20 my report.
21 Q Where was the two-page letter found?
22 A Outside their door.
23 Q And did you take it from outside the door?
24 A I took it from the caller, Ms. Walters.
25 Q All right. And did you put that into evidence?

1 A Yes. Yeah. I brought it back to the station, scanned it
2 into evidence, and then notated that it was in my report.
3 Q At the time that you took that note into evidence, did you
4 read it prior to --
5 A I skimmed it over, yeah. Kind of just made some mental
6 notes about it and then turned it over to -- the report to
7 the detectives.
8 Q Would you recognize the letter if you saw it again?
9 A Yeah.
10 MR. PASKULOVICH: Can I approach the witness,
11 your Honor --
12 THE COURT: Yes.
13 MR. PASKULOVICH: -- with People's Proposed no.
14 18?
15 BY MR. PASKULOVICH:
16 Q Do you recognize what that is?
17 A Yes.
18 Q Is that the letter that you picked up on December 21,
19 2024, from the residence of 1145 Bayfield?
20 A Yes, sir.
21 MR. PASKULOVICH: I'd move to admit People's
22 Proposed Exhibit 18 into evidence, your Honor.
23 THE COURT: Any objections?
24 THE DEFENDANT: I object, your Honor. There's
25 not actually any evidence that I put that there or that

1 somebody else didn't put that there.

2 THE COURT: Thank you. That may go to the

3 weight of the evidence itself, not its admissibility. So

4 it will be admitted.

5 MR. PASKULOVICH: Thank you, your Honor.

6 (At 3:13 p.m., People's Exhibit no. 18

7 admitted.)

8 BY MR. PASKULOVICH:

9 Q Was there anything in that letter that was of concern to

10 you or startled you when you glanced it over?

11 A I mean, a lot of it was concerning. He was talking about

12 how he -- forgive me for my violation of your boundaries.

13 He keeps saying, you know, I realize the irrationality of

14 my attachment to you. You don't understand what I'd give

15 to move past this. Things like that just in my

16 experience, training and experience, is just kind of

17 concerning, especially if it's unwanted in nature by the

18 person it's being presented to.

19 Q So when you read this letter, it was about -- it was

20 relevant to what the call was made for.

21 A Correct. Yeah.

22 Q Okay. Did you find the defendant on the scene or near the

23 scene when you were there?

24 A No, we didn't. We arrived a little late.

25 Q Do you recall if anything else was left with that letter?

1 A I don't recall besides the letter. He signed it. Didn't
2 have any video or anything.
3 Q Is there a signature or a name or any contact info?
4 A Yeah. So he signed it, or at least Fox signed it, at
5 least electronically here.
6 Q Does it have any contact information on it, anything like
7 that that would be identifiable to --
8 A Just his name at the bottom, sincerely, Fox.
9 Q Okay. And who was the letter addressed to?
10 A Brianna.
11 MR. PASKULOVICH: No further questions. Thank
12 you.
13 THE COURT: Thank you.
14 Go ahead, Mr. Parton, whenever you're ready.
15 THE DEFENDANT: Thank you, your Honor.
16 CROSS-EXAMINATION
17 BY THE DEFENDANT:
18 Q Did you ever see me at the residence in question?
19 A I did not.
20 Q How quickly did you respond to the scene after receiving
21 the call? Do you have an idea what the timeline --
22 A I can't remember exactly the time, but our response time
23 is very quick in Orion, so probably within five-ish
24 minutes. That's just an estimation, though.
25 Q I'm sorry. You said within five minutes?

1 A About five-ish minutes.
2 Q Five-ish minutes?
3 A I couldn't tell you the exact time.
4 Q Okay. Okay. I'm not supposed to say that I -- but you
5 stated at some point that you didn't see anybody coming
6 out of the driveway? You didn't see anything like that?
7 You didn't see a vehicle leaving --
8 A I did not, no.
9 Q -- as you were coming in?
10 A No. We checked the area but didn't see anything.
11 Q You didn't find anything when you checked the area, no
12 evidence of broken property or anything like that?
13 A Evidence of broken property?
14 Q Broken property, signs of prowling or destruction of
15 property? You didn't find anything?
16 A I mean, besides this letter and then their statement,
17 that's what we came across.
18 Q Just the letter and the statement? Okay.
19 Was there any forensic evidence linking me to the
20 scene of the crime?
21 A Forensic like what?
22 Q Fingerprints, DNA, anything like that?
23 A No.
24 Q Okay. You said that the letter was electronically signed
25 but then you -- can you explain that a little further?

1 A Yeah. Instead of writing it out by hand, just typing it
2 out on here on a printer.
3 Q So it just says, like, typed, sincerely, Fox.
4 A Correct. Yep.
5 Q So you arrived within five-ish minutes. You didn't see
6 any vehicle leaving.
7 A No.
8 Q Okay. Are you sure that note you found on their doorstep
9 was a note I had left?
10 A I mean, the caller, Brianna, said she saw you there and
11 then --
12 Q Correct.
13 A -- this note was found there. So it's reasonable to think
14 that you orchestrated it and left it there.
15 Q Of course.
16 THE DEFENDANT: I don't think I have any further
17 questions.
18 THE COURT: Okay. Any redirect?
19 MR. PASKULOVICH: No, your Honor.
20 THE COURT: Okay. Thank you may step down.
21 (At 3:17 p.m., witness excused.)
22 THE COURT: You may call your next witness.
23 DEPUTY HILL: Thank you, your Honor.
24 THE COURT: Thank you. Thank you for coming in.
25 MR. PASKULOVICH: People call Detective

1 Bodendorfer.

2 THE COURT: When you get to the top of the ramp,

3 if you could please face me and raise your right hand.

4 Do you swear or affirm the information you're

5 about to give the Court will be truthful, accurate, to the

6 best of your ability, so help you God?

7 DETECTIVE BODENDORFER: Yes, I do.

8 THE COURT: Please be seated. When you're

9 comfortable please state your full name and spell it for

10 our court recorder and our jurors.

11 THE WITNESS: Yes, Detective Nathan Bodendorfer.

12 It's N-A-T-H-A-N, B-O-D-E-N-D-O-R-F-E-R.

13 THE COURT: Thank you.

14 Go ahead.

15 NATHAN BODENDORFER

16 was called at 3:17 p.m. by the People, sworn by the Court,

17 testified:

18 DIRECT EXAMINATION

19 BY MR. PASKULOVICH:

20 Q Where are you employed?

21 A I'm with the Oakland County Sheriff's Office.

22 Q What is your current position there?

23 A Detective with Orion Township.

24 Q How long have you been employed in law enforcement in

25 total?

1 A Just over ten years now.
2 Q Directing your attention to June 27, 2024, were you
3 employed with Oakland County Sheriff's Office?
4 A Yes, I was.
5 Q Working in that capacity on that date?
6 A Yes, as a road patrol officer.
7 Q Do you recall if on that date you were called to a scene
8 of an unwanted person at the address of 1145 Bayfield?
9 A Yes, I was.
10 Q Did you receive that from dispatch, or how did --
11 A From dispatch.
12 Q What information did you have, if anything, when you were
13 first alerted to that call?
14 A That an unwanted ex showed up to their residence and that
15 they were fearful of him and wanted to file a report
16 regarding that.
17 Q All right. Did you go to the scene when you got
18 dispatched?
19 A Yes.
20 Q Were you by yourself or with a partner?
21 A By myself.
22 Q And when you got to that house, do you recall who was
23 there?
24 A Yeah. It was -- I talked to a Gavin and a Brianna.
25 Q All right. What, if anything, did you learn upon arriving

1 and speaking with them?
2 A So I was told that a person that Brianna used to know from
3 a long time ago that they met in school has been
4 constantly in contact and harassing her for some time now.
5 I was told that he arrived at their house just prior to
6 the call and that she -- they wanted to report that as
7 harassing behavior.
8 Q What was their body language like or demeanor like when
9 speaking to you about it?
10 A Yeah. I mean, they were very concerned. They were
11 frightened. At that time Brianna thought that she did --
12 that Fox did not know where they lived. So she was
13 concerned and upset over that.
14 Q Could you explain that? She thought that Fox didn't know
15 where they lived or she lived?
16 A For where Brianna and Gavin lived.
17 Q Were they actively seeking to report this out of concern
18 or were they seeking charges? What was the conversation
19 like?
20 A They were trying to report it at the time. I told them
21 all the courses that they could take. If we do report it,
22 we would get in contact with Fox and get his side of the
23 story as well. At that time, because Gavin did -- was the
24 only person who had contact with Fox, Brianna was hoping
25 that he did not believe that she actually lived there

1 because Gavin told Fox that he was the only person that
2 lived there and he just moved in.
3 So she was hoping that if I did not make a
4 report that Fox would believe that she did not live there,
5 and she thought that she'd be safer that way than making a
6 report.
7 Q And that was ultimately out of fear?
8 A Out of fear, correct.
9 Q And knowing where she lives. Okay.
10 Did you look for Mr. Fox when you were arrived at the
11 scene or was there any --
12 A Just the immediate area.
13 Q Yeah.
14 A But no more than that, no.
15 Q And were you familiar with any of these individuals when
16 you responded on that date?
17 A No.
18 Q It was the first interaction with all of them?
19 A Yes.
20 Q Did you inquire to see if there were cameras or anything,
21 Ring doorbell, anything of that sort, or no because you
22 didn't want to continue with that report?
23 A I really don't recall if they had cameras. I believe
24 there was a camera, but from my recollection I think they
25 told me it was not working from what I recall. I don't

1 remember.

2 Q If you weren't going to pursue a report per their request,

3 would you still collect anything?

4 A Yes.

5 Q Okay. Thank you. Nothing else.

6 THE COURT: Any questions?

7 THE DEFENDANT: Yes, your Honor.

8 CROSS-EXAMINATION

9 BY THE DEFENDANT:

10 Q Sorry. Could you repeat your name for me?

11 A It's Detective Nathan Bodendorfer.

12 Q Bodendorfer, okay. Thank you very much.

13 So I did have a couple questions about -- you wrote a

14 report on the incident; is that correct?

15 A It's not an official report. It's called call for

16 service. It's what we keep when it's just under a police

17 report. It's basically a record of something that

18 occurred, but it's not a criminal report.

19 Q Understood. But you were involved in the creation of that

20 call for service.

21 A Yes.

22 Q You're familiar with it?

23 A Yes.

24 Q Would you need to be refreshed with it if you were asked

25 about it?

1 A I don't think so.
2 Q Okay. So it's my understanding that the call was
3 initiated by Mr. Kennard or Gavin, but at the end of the
4 call it was Brianna's decision to not make the report; is
5 that correct?
6 A I was speaking with both of them and I believe it was a
7 decision that we made, that they all made together,
8 correct.
9 Q Understood. And it say -- I'll just read it right off of
10 the report. It says, Brianna stated she has been harassed
11 by Fox Parton, who is someone she has known since high
12 school, not threatening, just unwanted contact. Tonight
13 Fox arrived at the residence asking if she lived there.
14 Current live-in boyfriend Gavin told him no and that he
15 just moved in.
16 I advised Brianna on all her options. Brianna wanted
17 to wait to report this in hopes Fox did not think that she
18 lived there. I provided Brianna my business card and
19 advised her to contact me if she changed her mind.
20 What does it mean when you say you advised Brianna on
21 all her options?
22 A Just several courses of action that she could take. She
23 could file a harassment report from the unwanted contact
24 by you. I could have called you and advised you not to
25 contact her or, again, leave it as a call for service and

1 just document that it happened in hopes that you would
2 leave her alone.
3 Q Okay. So the call for service, she decided to leave it as
4 a call for service.
5 A She never contacted me after that, so, yes.
6 Q I see in the report it says, as of 7-8 Brianna has not
7 contacted me regarding a report. Closed as call for
8 service.
9 A Yes.
10 Q All right. So when police are responding typically to an
11 instance of not threatening but unwanted contact, what are
12 the first things that someone like you responding would
13 typically tell the person who made the call?
14 A Well, I would ask them what happened.
15 Q Well, I mean, as far as advising them as their options.
16 What would you typically say that they should do if they
17 wanted the contact to stop or the first steps to do so?
18 A I'd leave it up to the victim of the case to decide how
19 the case proceeds.
20 Q Okay.
21 A At this point in the time in this case, she was hoping
22 that you didn't believe that she lived there and she
23 didn't want me to ask you.
24 Q Okay. So advising her on all her options would be
25 advising on how to submit a harassment complaint and you

1 said what else?
2 A Like I said, I could have filed a harassment report from
3 the consistent contact of the unwanted contact. I could
4 have called you and contacted you, you know, told you to
5 leave her alone or just leave it as a call for service and
6 leave it documented without contact.
7 Q But she requested that you don’t do any welfare check or
8 inform me of anything that happened.
9 A Welfare check? No.
10 Q As opposed to a welfare check, she made the decision that
11 you would not inform me that anybody had called me that
12 there was unwanted contact that should stop.
13 A Yes. Like I said, she was hoping that you didn't believe
14 that she lived there, so, yes.
15 Q Okay. Would you ever advise someone who’s in a situation
16 like that that their best bet would be to leave someone
17 unblocked and ignore them as long as possible to
18 deescalate an OCDS detachment (sic)?
19 A I’m sorry. I don’t understand.
20 Q I say is there ever a situation where your advice to
21 someone in that situation be that the best thing they
22 should do is to leave an individual unblocked and make no
23 reference that they should stop contacting them? Would
24 that ever be what you would advise?
25 A I mean, every instance is different. I mean, I can’t say

1 I'd say one way every single time. Every situation's
2 unique.
3 Q Okay. So it's not like a prerequisite for you to tell
4 someone in an instance of harassment, hey, you should have
5 a clear no contact, that that person should stop
6 contacting you in order to make it stop?
7 A Usually we tell people not to contact them, the people
8 who's harassing them.
9 Q You reach out to them for them; is that what you're
10 saying? Sorry, I didn't mean to cut you off.
11 A To the other person, you're saying?
12 Q Are you saying typically you would contact the alleged
13 harasser on the complainant's behalf to inform them that
14 they should stop contacting them?
15 A Yes. That's one of the ways this case could be handled,
16 yeah, in that incident.
17 Q Okay. And you said she specifically requested you don't
18 do that.
19 A Yeah. In this case she asked me not to in the hopes that,
20 like I said, that you'd believe that she did not live
21 there so she wasn't in fear anymore.
22 Q Okay. Did she give you any screenshots or tell you
23 anything about messaging content on June 27th?
24 A I don't remember that specifically, no.
25 Q Okay. So you don't remember if she provided any sort of

1 evidence of contact happening at that point?
2 A No. I mean, this case is almost a year ago. I barely
3 remember it as it is.
4 Q Trust me, I'm right there with you.
5 So there were no welfare checks. There was nothing
6 to inform me for six months after that point that someone
7 had ever called the police stating my name over the phone.
8 A At that point -- I'm sorry. Could you repeat that again?
9 Q I wasn't aware that anybody ever called the police and
10 said my name over the phone in June until December. I
11 mean, I was never made aware of that to my knowledge. So
12 I was just confirming that.
13 So your department never reached out to me, never
14 performed a welfare check or any sort of a courtesy call
15 on behalf of the complainant?
16 A No. I never contacted you regarding that incident, no.
17 Q Okay.
18 THE DEFENDANT: I think that's all the questions
19 that I have.
20 THE COURT: Okay. Thank you.
21 Any redirect?
22 MR. PASKULOVICH: No, your Honor.
23 THE COURT: Okay. Thank you for coming in. You
24 can step down.
25 (At 3:31 p.m., witness excused.)

1 THE COURT: You may call your next witness.
2 MR. PASKULOVICH: People call Detective Mendez.
3 THE COURT: Could you please face me and raise
4 your right hand?
5 Do you swear or affirm the information you're
6 about to provide to the Court and the jurors will be
7 truthful, accurate, to the best of your ability, so help
8 you God?
9 DETECTIVE MENDEZ: (No audible response.)
10 THE COURT: Thank you. Please be seated and
11 state your full name and spell it for our court recorder
12 and our jurors, please.
13 THE WITNESS: Detective Miguel Mendez, M-I-G-U-
14 E-L, M-E-N-D-E-Z.
15 THE COURT: Go ahead.
16 MIGUEL MENDEZ
17 was called at 3:31 p.m. by the People, sworn by the Court,
18 testified:
19 DIRECT EXAMINATION
20 BY MR. PASKULOVICH:
21 Q Where are you employed?
22 A Oakland County Sheriff's Office.
23 Q What is your position there?
24 A Detective.
25 Q How long have you been employed as a detective?

1 A Detective for about six months right now in Orion.
2 Q And how long have you been employed in law enforcement in
3 total?
4 A Law enforcement going on 15 years.
5 Q Directing your attention to December 2024, were you
6 working with the Sheriff's Office in Oakland County?
7 A Yes.
8 Q And around that time did you become involved in an
9 investigation into an individual named Fox Parton?
10 A Yes, sir.
11 Q How did you become involved in that investigation?
12 A I received a -- I was assigned the report that was written
13 that Deputy Hill wrote.
14 Q When you say "assigned," can you explain to the jury what
15 that means?
16 A So when the road patrol writes a report, it gets approved
17 by the sergeants, and my detective sergeant will assign it
18 to one of the three detectives that we have working, which
19 is me, Detective Bodendorfer, and then there's another
20 detective.
21 Q So when the initial report comes to you, what do you do
22 when you get that report?
23 A I review the report and I just start working on it
24 accordingly.
25 Q So at that point is a determination if more investigation

1 is needed, close it out, or how --
2 A Yes.
3 Q Okay.
4 A And in that instance, I mean, more investigation was
5 needed, especially making contact with the responsible.
6 Q So what did you do once you got the report and read it?
7 What did you do when you got the report and reviewed it?
8 A In this instance I reviewed the report. I believe I
9 looked for -- we have a lot of systems that can find
10 people. They can find phone numbers and stuff. I tried
11 to contact Fox Parton in this instance.
12 Q And were you able to get in touch with him?
13 A Yes, I was.
14 Q How did you get a hold of him?
15 A Phone call.
16 Q And did you talk to him regarding this incident, or what
17 happened?
18 A Yes.
19 Q All right. So you called him and talked to him on the
20 phone and what, if anything, did he say to you?
21 A What was that again?
22 Q What, if anything, did he say to you?
23 A I don’t recall the phone call. I know I asked him to come
24 in for an interview.
25 Q Okay. So was the call just to schedule an interview or to

1 talk about this investigation?
2 A I don’t recall. I think it was mostly scheduling the
3 interview.
4 Q Okay. And at this point when you talked to the defendant,
5 had you already been in contact with any other individuals
6 involved in this matter?
7 A Brianna.
8 Q So you talked to Brianna previously. What kind of
9 information or --
10 A Basically I talked with her, just asking, you know,
11 confirming the report, asking what happened, what the
12 contacts -- if they were unwanted, how she felt. That’s
13 when, you know, she told me she was scared.
14 Q So it was your role just to follow up, get follow-up
15 information.
16 What did you find Brianna Walters’ demeanor or mood
17 when talking about this?
18 A When I talked to her over the phone, she told me she was
19 scared.
20 Q At that point was it clear that there were going to be any
21 sort of charges, or was an investigation specifically
22 against Fox Parton? What that something that Brianna was
23 aware of, or what was her --
24 A She wasn’t aware. I just told her I was going to
25 investigate it.

1 Q All right. So when you talked to Fox Parton, you
2 scheduled an in-person meeting with him?
3 A Yes, sir.
4 Q And when did you have that meeting?
5 A I don't recall. I don't recall which day it was.
6 Q Okay. Would it refresh your memory if you looked at the
7 police report?
8 A Yes, sir.
9 MR. PASKULOVICH: May I approach the witness?
10 THE COURT: Yes.
11 BY MR. PASKULOVICH:
12 Q Want to just look at that and let me know when you're
13 done. Just take it all up there.
14 A I believe -- I think it was the 23rd of --
15 Q I'll stop you. Did that refresh your memory?
16 A Yes.
17 Q What date was the in-person interview you had with
18 Mr. Parton?
19 A I don't think it's in here, but I believe it was the 24th.
20 MR. PASKULOVICH: May I approach for the report?
21 THE COURT: Yes.
22 BY MR. PASKULOVICH:
23 Q All right. So you say the 24th. Was that December or what
24 month?
25 A Should be December.

1 Q Okay. December 2024?
2 A Yeah.
3 Q Where did that interview take place?
4 A At the Orion Township substation in the interview room.
5 Q And were you conducting the interview?
6 A Yes.
7 Q Was anyone else with you?
8 A Yes, it was Detective Tolan.
9 Q And at this point in time was it completely optional for
10 defendant to come in for an interview, or what was the
11 situation?
12 A Yes, sir. Yes, it was optional. I gave him the option of
13 coming down.
14 Q Did he know that it was completely voluntary and he could
15 leave at any time?
16 A Yes. Yes. We stated when we first went into the
17 interview, which is recorded, that he could leave at any
18 time and he’s here on his own free will.
19 Q All right. Tell me about that interview, what the
20 defendant said to you during it.
21 A Basically, you know, I asked him the whole, like, what it
22 is start to finish, him dealing with Brianna. In that
23 interview he basically started, like, from the beginning
24 of high school and how they did a class project together.
25 I don’t remember verbatim.

1 Q Was it recorded when you conducted the interview?
2 A Yes.
3 Q And do you know if the recording has been saved?
4 A Yes.
5 Q Would you recognize the recording if you saw it again?
6 A Yes, sir.
7 MR. PASKULOVICH: Your Honor, may I connect to
8 the screen?
9 THE COURT: Yes. Has this been marked as an
10 exhibit?
11 MR. PASKULOVICH: I was just going to. I'll
12 mark it as People's Proposed 20 or 21.
13 THE COURT: Twenty?
14 MR. PASKULOVICH: Twenty.
15 THE COURT: Twenty-one.
16 THE DEFENDANT: Your Honor, I'd like to object
17 to playing the video on the screen before it's admitted.
18 I object to the admission of the interview video on three
19 primary grounds, late disclosure, digital evidentiary
20 integrity, and lack of proper authentication or
21 identification.
22 MR. PASKULOVICH: I haven't moved for admission.
23 THE DEFENDANT: First --
24 THE COURT: Hang on. He hasn't moved for
25 admission yet.

1 MR. PASKULOVICH: I was just going to put a
2 still photo on the screen as a way to authenticate
3 (inaudible) defendant.
4 THE COURT: Okay.
5 THE DEFENDANT: I apologize.
6 THE COURT: That's okay.
7 THE DEFENDANT: I was jumping into action.
8 THE COURT: You don't have to apologize.
9 THE DEFENDANT: Thank you, your Honor.
10 BY MR. PASKULOVICH:
11 Q Detective, do you recognize what this is on the screen?
12 A Yes. That is our interview room, sir.
13 Q And who is in the interview room?
14 A That would be me on the far right, in the deputy uniform
15 that's Detective Tolan, and then in the blue jacket would
16 be Fox Parton.
17 Q And on there it states at the very top left, you may not
18 be able to read it from where you are, but it says
19 12:21:17 for a time and a date of 2024, 12-23.
20 A Yes, sir.
21 Q Would those dates and times be correct?
22 A Yes, sir.
23 Q You know the system keeps an accurate date and time when
24 it records?
25 A Yes.

1 Q Based on this still shot, this being a fair and accurate
2 depiction of the recording you know it to exist?
3 A Yes, sir. There's that angle. There's also an overhead
4 angle.
5 Q And have you seen both of the videos in entirety?
6 A Yes, sir.
7 Q You had an opportunity to review them prior to court date
8 today?
9 A What was that, sir?
10 Q You've had the opportunity to review them prior to court?
11 A Yes.
12 MR. PASKULOVICH: Your Honor, based on that I
13 would move to admit -- this is People's Exhibit 20.
14 THE COURT: Okay. Your objections?
15 MR. PASKULOVICH: I'm sorry, 21.
16 THE COURT: Twenty-one.
17 THE DEFENDANT: Your Honor, I object to the
18 admission on three primary grounds, late disclosure,
19 digital evidentiary integrity, and lack of proper
20 authentication or identification. Firstly, this video was
21 not made available to me until May 15th, after jury
22 selection and trial had already been in session. It's
23 true that I --
24 THE COURT: I'm going to stop you for a moment.
25 Did we not discuss this issue specifically already as it

1 relates to that issue, and I already made a ruling as it
2 relates to that, right?
3 THE DEFENDANT: I'm just reading off the thing
4 that I had already preprepared.
5 THE COURT: I'm not sure --
6 THE DEFENDANT: I can move on to the other two
7 objections.
8 THE COURT: Okay.
9 THE DEFENDANT: Second, there is no evidence
10 that the video has been properly authenticated under MRE
11 901. There are no metadata reports, no signature hash
12 values, no digital signatures or forensic documentation,
13 no chain of custody provided. The video, as it was
14 presented to me, was stored in a cloud-based OneDrive, not
15 a controlled forensic environment. Internal timestamps
16 show modifications well after the alleged incidents,
17 duplicates of the video where one of them is stated to
18 have been recorded May 8th. No explanation --
19 THE COURT: Okay. So if you want to ask some
20 specific questions of your concerns regarding the video,
21 go ahead. I'll allow you to question the detective if
22 you're concerned it's not an authentic version of the
23 video that you -- interview.
24 MR. PASKULOVICH: Your Honor, is it just voir
25 dire as to admission?

1 THE COURT: Yes.
2 MR. PASKULOVICH: Okay.
3 THE DEFENDANT: So only questions specifically
4 to the digital integrity.
5 THE COURT: Correct, because you'll have a
6 chance to question the detective about all the things once
7 it comes the time to do so.
8 THE DEFENDANT: Okay. Thank you, your Honor.
9 VOIR DIRE
10 BY THE DEFENDANT:
11 Q Detective Mendez, were you the first -- when this video
12 was recorded, who first handled it? Who first handles
13 that digital evidence?
14 A I did.
15 Q You did.
16 A So I went onto CaseCracker, which we use for our video
17 system, which is encrypted and also password relied on. I
18 took that video and I put it into command central
19 evidence, which is our county evidence digital storage.
20 Q So when that video was first recorded or generated, was
21 there a hash generated for the video?
22 A What do you mean by that?
23 Q A hash, like a digital signature. It's an algorithm that
24 you run the zeros and ones through for the video. It
25 gives you a, you know, unique identifier, which is

1 supposed to show if anything's been changed over time.
2 A Okay. I'm not that Internet or --
3 Q Okay.
4 A -- one of those technicians you're thinking, but when I
5 took that video, I took that video and I put it directly
6 into command central.
7 Q So you're not familiar with --
8 THE COURT: So, Mr. Parton, you heard the
9 detective indicate he viewed the video and it is accurate.
10 It accurately reflects your interview. Are you indicating
11 that there's something fraudulent about that?
12 THE DEFENDANT: It's not as simple as making an
13 accusation of fraud, your Honor. It's simply that there
14 are standards which are regularly available for how you
15 can authenticate the chain of custody for digital evidence
16 and ensure that it hasn't been tampered with, because we
17 do live in a day where -- again, I hate to be the guy --
18 THE COURT: Okay. You don't have to explain
19 that, but if there's specific questions as it relates to
20 chain of custody, go ahead.
21 THE DEFENDANT: Okay.
22 BY THE DEFENDANT:
23 Q In that -- included with the video was a CSV file for the
24 metadata. Are you familiar with that?
25 A No.

1 Q You're not familiar with the metadata at all?
2 A Yeah, I'm not technology savvy.
3 Q Okay. So you can't really speak to the authenticity of
4 the digital evidence at that point, then. So you're
5 saying you're not aware of even generating --
6 A So I was the first one to -- I recorded that video. I
7 saved the video and it went straight to command central.
8 Q So you don't have -- you can't provide today a signature
9 hash of that video and a chain custody which would
10 demonstrate that that video has not been altered or
11 replaced since it was recorded.
12 A I don't have that technology, no.
13 Q Okay.
14 THE COURT: Any other questions?
15 BY THE DEFENDANT:
16 Q Are you familiar at all with this table of contents of the
17 evidence, which was --
18 THE COURT: Do you want to show it to
19 plaintiff's counsel, People?
20 MR. PASKULOVICH: Your Honor, this isn't even
21 something that came with the video. This is the
22 Prosecutor's Office when we enter discovery. It comes --
23 it's a list of files. So it wouldn't even be something
24 that the detective has knowledge of.
25 THE COURT: Are you objecting to him looking at

1 this? Is it relevant?

2 MR. PASKULOVICH: I think it's irrelevant. This

3 is the Prosecutor's Office providing a list of what files

4 when we send something. The Sheriff's Office has nothing

5 to do with it.

6 THE COURT: Okay. So what --

7 MR. PASKULOVICH: So I don't think it would be

8 relevant to this video.

9 THE COURT: Okay. If it's relevant to this

10 video you may ask, but I don't know --

11 THE DEFENDANT: I mean, I guess that's one of

12 the other problems here is that I see how it's relevant,

13 but if this data is from the Prosecutor's Office and I

14 can't ask law enforcement about it --

15 THE COURT: You're talking about this specific

16 video.

17 THE DEFENDANT: It's the date recorded

18 attributable to the video in the evidence log, which was

19 included with all the evidence which was given to me,

20 which was given to the public defender by the prosecution.

21 THE COURT: Okay. I'm not understanding. This

22 video was not listed on that information; is that what

23 you're indicating?

24 THE DEFENDANT: There is two -- there are two

25 copies of it listed in the evidence list, one of which

1 states that it was recorded May 8th --

2 THE COURT: Oh, you can ask --

3 THE DEFENDANT: -- 2025.

4 THE COURT: Okay. That sounds relevant. You

5 can ask that.

6 BY THE DEFENDANT:

7 Q Are you aware why there would be duplicate of the video in

8 evidence storage that would state that it was recorded May

9 8th, five months after this would have happened?

10 A No. Like what do you mean by May 8th? What's on there?

11 Q I have an evidence log which was given to me along with

12 this video as well as others that lists all of the

13 evidence that was provided.

14 MR. PASKULOVICH: Your Honor, I just want to

15 avoid confusing --

16 THE COURT: The jury?

17 MR. PASKULOVICH: -- the jury with this, because

18 what happened is my belief is the Sheriff's Office, which

19 he said testified, uses command central --

20 THE COURT: Right.

21 MR. PASKULOVICH: -- and they transferred it to

22 the Prosecutor's Office. We use our own system, and I

23 think this is a list of what we tendered to then the

24 defendant. So it's all our files.

25 THE COURT: Ah, okay. All right.

1 MR. PASKULOVICH: So this wouldn't be something
2 the Sheriff's Office sent us. It's an inventory of our
3 case file that we sent to them.
4 THE COURT: Okay. So it doesn't sound like it's
5 relevant. Those are two separate things and two separate
6 transfers. I misunderstood.
7 Any other questions?
8 THE DEFENDANT: Yes.
9 BY THE DEFENDANT:
10 Q Let me come at this a different way. When you -- at what
11 point did you have the video ready and processed,
12 recorded, uploaded into the system? Do you know what
13 date?
14 A So when I activate the recording on that, it automatically
15 -- it records straight to the CaseCracker. When that
16 recording is ended, it is automatically saved in
17 CaseCracker.
18 So what you're asking is as soon as it was done
19 recording, that's when it saved.
20 Q Now, can you explain why that video stayed within law
21 enforcement's hands and didn't reach the prosecution's
22 hands until May 9th, four months later?
23 A I submitted it.
24 Q Five months later.
25 A I submitted it, everything through OCPO evidence over --

1 Q What date did you submit it?

2 A When I submitted the warrant.

3 MR. PASKULOVICH: I would object how this is

4 relevant to the authenticity of what -- if this video

5 being what it purports to be, which is the evidentiary

6 standard.

7 THE COURT: Yes.

8 Okay. Any other questions?

9 THE DEFENDANT: Am I allowed to argue that

10 objection, your Honor?

11 THE COURT: Are you done asking him questions

12 regarding that?

13 THE DEFENDANT: I'm not done asking. I had a

14 couple more.

15 THE COURT: Okay.

16 THE DEFENDANT: But I have lost my train of

17 thought again.

18 BY THE DEFENDANT:

19 Q So you don't have any awareness of why the prosecution

20 would have not had this video in their hands until May 9th.

21 A No.

22 Q Did you include any chain of custody documentation when

23 you submitted the video, or does it automatically generate

24 any chain of custody documentation?

25 A So when that video was made, my name's tagged on there.

1 So when it was saved, it saved with my name as the
2 interviewer and the interviewee was you.
3 Q Are there any custody logs available to accompany the
4 video?
5 A No. Everything went straight to command central, so
6 everything's in that.
7 Q I don't know what command central is. All I know is that
8 an IST recommends or required more, like, digital chain of
9 custody for -- if we don't have a hop to hop to hop of
10 this person had it in their hands here, it was in the
11 system --
12 THE COURT: Okay. You need to ask a question.
13 BY THE DEFENDANT:
14 Q -- here, then it was in the system --
15 THE DEFENDANT: -- okay.
16 BY THE DEFENDANT:
17 Q You don't have anything like that. You can't provide
18 anything like that that demonstrates who had access to the
19 video when.
20 A No. Like I said, I take it. It goes straight to command
21 central. I tagged it with the complaint number, which is
22 the original complaint number that Brianna called in with.
23 Then when it -- when I submit the warrant, I send that
24 video over through -- to the Prosecutor's Office at OCPO
25 evidence.

1 Q Okay. So you stated you're not a tech guy but you
2 understand the concept of a digital hash or signature.
3 A What you just said, yeah.
4 Q Okay. But you're not aware of any signatures that could
5 be attributed to this video which could be used to ensure
6 that it wasn't altered.
7 A There's nothing.
8 Q Are you aware that that's a pretty routine standard across
9 law enforcement and courts, IT infrastructure?
10 A It's on CaseCracker and it goes to command central.
11 MR. PASKULOVICH: Your Honor, I don't see how
12 this is relevant for voir dire. For cross-examination I
13 think it's more appropriate.
14 THE COURT: Okay. I'm going to have -- your
15 issue is the chain of custody and whether what happened
16 between this time.
17 So, Counsel, do you want to ask any questions?
18 That's his concern is the chain of custody, that somebody
19 might have altered it and come in and done something with
20 this video.
21 MR. PASKULOVICH: Detective --
22 THE COURT: If you want to have a seat, we'll
23 have counsel ask some questions to clarify.
24 DIRECT EXAMINATION CONTINUED
25 BY MR. PASKULOVICH:

1 Q Detective, you personally were in that video the entire
2 time, correct?
3 A Yes, sir.
4 Q It's you talking.
5 A Yes.
6 Q And you don't have any memory problems, correct?
7 A No.
8 Q You can remember what you see with your own eyes.
9 A Yes.
10 Q What you asked, what you hear in it.
11 A Yes, sir.
12 Q You've watched this video since prior to court.
13 A Yes.
14 Q And based on your own memory and your own perception,
15 you're able to determine that that is what occurred on
16 video.
17 A Indeed.
18 Q So no one has edited based on it being the same thing.
19 A No one --
20 Q You personally heard him talk.
21 A -- no.
22 MR. PASKULOVICH: Your Honor, I think that'd be
23 sufficient for MRE 401.
24 THE COURT: Thank you.
25 I do believe that this -- there is no issue as

1 it relates to the authenticity of this matter based upon
2 the questions that were asked by both Mr. Parton and the
3 assistant prosecuting official, and it will be admitted.
4 (At 3:54 p.m., People's Exhibit no. 21
5 admitted.)
6 MR. PASKULOVICH: May I publish, your Honor?
7 THE COURT: Yes.
8 MR. PASKULOVICH: And I'll ask defendant if you
9 would like me to play the whole to completion, or if I can
10 just skip through portions if not.
11 THE DEFENDANT: Your Honor, I'm sorry. I do
12 invoke the Rule of Completeness.
13 THE COURT: So you want the whole -- you do want
14 the whole thing played.
15 THE DEFENDANT: I would like the whole thing --
16 THE COURT: Okay. You're entitled to that.
17 THE DEFENDANT: With that said being that it's
18 an hour and 15 minutes long, would it be unreasonable for
19 a quick bathroom break before we do this?
20 THE COURT: If you need one, we'll take one.
21 THE DEFENDANT: I'd greatly appreciate it.
22 THE COURT: Okay. We'll take a five-minute
23 recess and then we'll watch even maybe a portion of the
24 video it sounds like. I don't even know if we'll be able
25 to get through the whole video, but we'll get it started.

1 THE DEFENDANT: The last ten minutes or so --
2 THE COURT: All rise for the jury.
3 (At 3:54 p.m., jurors exit courtroom.)
4 THE COURT: Okay. We are in recess.
5 (At 3:55 p.m., court recessed.)
6 (At 4:03 p.m., court reconvened.)
7 COURT CLERK: All rise for the jury.
8 (At 4:03 p.m., jurors enter courtroom.)
9 THE COURT: Recalling Parton, 24-7808.
10 Your names one more time.
11 MR. PASKULOVICH: Good afternoon. Kyle
12 Paskulovich appearing on behalf of the People.
13 THE DEFENDANT: Good afternoon, your Honor. Fox
14 Parton representing myself.
15 THE COURT: Thank you.
16 And go ahead.
17 MR. DOWNER: Harold Downer, standby counsel for
18 Mr. Parton.
19 THE COURT: Thank you.
20 All right. As you heard -- you may be seated.
21 As the jurors heard, we've got the video is about an hour
22 and 15 minutes. I'd like to play the entire video just to
23 make sure we can finish up tomorrow morning. I have a
24 docket in the afternoon. So I'd like to finish this so
25 that you can start deliberating, you know, well before

1 lunchtime.

2 So my question, I might have indicated to you

3 before, usually our court closes at 4:30. Can everybody

4 stay till about 5:15 till we finish the video, or does

5 somebody have something? Are we good for that, to 5:15?

6 Okay. So the plan will be listen to the video, we'll

7 recess for the day, and you'll come back tomorrow morning.

8 Okay. Go ahead.

9 (At 4:04 p.m., People's Exhibit no. 21 played in

10 court.)

11 THE COURT: It's kind of -- is it too loud?

12 UNIDENTIFIED MALE: Yeah.

13 THE COURT: We want to make sure you can hear

14 it. It's coming right through my speaker here, so it's

15 really loud. I don't know. Is it coming through your

16 speakers, too? Okay. Let's get it at a volume that's --

17 is it -- well, it sounds good to me. Is that okay for

18 everybody?

19 What's going on with this? Why does it keep

20 stopping and starting like that?

21 MR. PASKULOVICH: I don't know if it's buffering

22 or -- sorry about that.

23 THE DEFENDANT: Your Honor, can I interject for

24 just a moment?

25 THE COURT: I'm sorry?

1 (At 4:08 p.m., video paused.)

2 THE DEFENDANT: I apologize, but this version of

3 the video I never received at all. I only ever received

4 the one with the view from the back.

5 THE COURT: You mean the overhead view?

6 THE DEFENDANT: No.

7 THE COURT: The aerial view?

8 THE DEFENDANT: No. The only video that I ever

9 was given access to was the rear video. It's, like,

10 pointed at the back of my --

11 THE COURT: I'm not sure what that --

12 THE DEFENDANT: -- it's pointed at the back of

13 my head.

14 THE COURT: -- what that is. I don't know what

15 you're talking about.

16 THE DEFENDANT: The other camera angle. I was

17 never given access to that camera angle. I was never

18 given access to that video.

19 MR. PASKULOVICH: Your Honor, everything in the

20 file I shared.

21 THE COURT: Okay.

22 THE DEFENDANT: I mean, I can show you the

23 OneDrive that doesn't have that in there.

24 MR. PASKULOVICH: Is it your request that we

25 show the video angle from the back?

1 THE COURT: With your back to it? Do you want
2 that one?
3 THE DEFENDANT: I mean, I think it would be
4 proper to show the one that I had access to, that I was
5 actually given the ability to review.
6 THE COURT: Either provide proof that you've
7 given him access to all views --
8 MR. PASKULOVICH: It would actually be Mr.
9 Downer because he was given the videos and then provided
10 it.
11 MR. DOWNER: I'm looking at what our office has
12 on our system that we would have forwarded on to Mr.
13 Parton. I see two videos; however, both appear to be the
14 angle from the back, which was the first angle that
15 Mr. Paskulovich showed.
16 THE COURT: Okay.
17 THE DEFENDANT: And this is --
18 THE COURT: Hang on.
19 THE DEFENDANT: I apologize.
20 THE COURT: All right. Do you have that back
21 view, angle view?
22 MR. PASKULOVICH: Yes. Just for -- I mean,
23 every single item has been disclosed specifically to
24 Mr. Downer, so --
25 THE COURT: Okay.

1 MR. PASKULOVICH: Thirty-seven items, May 9th,
2 12:31 p.m.
3 THE COURT: Okay. All items are disclosed, but,
4 as indicated, defense counsel received or forwarded on to
5 defendant. I don't know that it really makes any
6 difference whatsoever.
7 MR. PASKULOVICH: I would rather start playing
8 the video.
9 THE COURT: Yeah.
10 (At 4:11 p.m., People's Exhibit no. 21
11 restarted.)
12 (At 5:13 p.m., video concluded.)
13 MR. PASKULOVICH: Your Honor (inaudible)
14 defendant indicated he's fine with ending at this period,
15 so am I.
16 THE COURT: Okay. Thank you.
17 I just want to verify that because you had
18 requested the entire video be shown, but you're okay with
19 ending at this point; is that correct?
20 THE DEFENDANT: Yes, your Honor.
21 THE COURT: Okay. Sounds good.
22 So we're going to call it a day for today, and I
23 just want to remind the jurors that you're not to discuss
24 this case with anyone, your family or friends, not even
25 your fellow jurors, till the time comes for you to decide

1 the case. When that time comes, all the jurors, we'll
2 send you to the jury room for that purpose, and then you
3 can discuss the case amongst yourselves but only in the
4 jury room when all jurors are present. When the trial is
5 over, of course, you can discuss this with whomever you
6 wish if you choose.
7 So I'm going to ask you to come back at 8:30. I
8 know we had a hard time getting started on time. That
9 shouldn't be an issue tomorrow. So I'm going to ask you
10 to come back at 8:30, report, and hopefully we'll be able
11 to start very close, if not right at 8:30.
12 Does anybody have any administrative questions?
13 Okay. All right. With that then I will -- all rise for
14 the jury. We'll have you leave and we will see you
15 tomorrow morning at 8:30. Just leave your notepads there.
16 We'll make sure that no one reads or reviews them, and
17 you're otherwise all set. If you need to get something
18 from the jury room, otherwise you're free to leave. Thank
19 you.
20 COURT CLERK: And I have letters if anyone needs
21 a letter for their employer.
22 (At 5:15 p.m., jurors exit courtroom.)
23 THE COURT: I just have something
24 administratively just beforehand.
25 Caitlin, just make sure there's -- are there any

1 other jurors in there? Were you the last one?
2 UNIDENTIFIED FEMALE: No, I don't think so.
3 THE COURT: Okay. Just double check.
4 And, yes, you can step down.
5 Okay. I just want to confirm everybody's going
6 to be here right back at 8:30 tomorrow. Hopefully we'll
7 be able to wrap things up.
8 Just for administrative purposes, so for
9 scheduling-wise, this is your last witness?
10 MR. PASKULOVICH: Yes. I anticipate that I'll
11 have a few more questions for tomorrow, very quick.
12 THE COURT: Okay. And I'm not holding you to
13 anything, just for scheduling purposes as it relates, do
14 you have witnesses that you're going to be calling, if you
15 know?
16 THE DEFENDANT: I do not, your Honor, but I was
17 going to cross-examine.
18 THE COURT: Absolutely. Of course you have the
19 right to do that, and then if you want to testify, you can
20 think about that, too, as well.
21 But I will indicate to you, just so you're
22 prepared, we'll likely go right after -- after all the
23 testimony has concluded, we're going to go right into --
24 we can take a little bit of a break, but just a very short
25 break, go into jury instructions -- or closing arguments

1 and then jury instructions, just so that you can be
2 prepared for that, okay?
3 THE DEFENDANT: Okay, your Honor.
4 THE COURT: Okay. Any questions?
5 MR. PASKULOVICH: Are there going to be any
6 defense exhibits you'd like me to review prior to tomorrow
7 to see if I can stipulate? Do you have any exhibits you
8 plan on introducing, if you know?
9 THE COURT: That would be really, really helpful
10 if there's something you were thinking you would like to
11 -- see what you can agree on if there are going to be
12 exhibits.
13 THE DEFENDANT: There's something that I could,
14 but I just -- especially when I'm the person talking about
15 the video authentication, I have a video of when we
16 were --
17 THE COURT: Okay. Whatever it is -- whatever it
18 is, if you can just meet with counsel to discuss those
19 things and see if you can agree on things so that we can
20 kind of cut through the chase and see if there's
21 potentially any issues in that regard, okay?
22 All right. With that we will see you tomorrow
23 morning at 8:30 unless there's anything further.
24 MR. PASKULOVICH: Thank you, your Honor.
25 THE COURT: Thank you.

1 (At 5:18 p.m., matter concluded.)

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STATE OF MICHIGAN)

) SS

COUNTY OF OAKLAND)

I hereby certify that this transcript, consisting of pages one through one hundred eighty-seven, is a complete, true and correct transcript of the proceedings had and the testimony taken in the matter of THE PEOLE OF THE STATE OF MICHIGAN, versus FOX ROBERT PARTON, Case No. 24-007808, held on May 21, 2025.

/S/ Jennifer Przybylo

_____
Jennifer L. Przybylo, CER-5852
Certified Court Recorder
52/3 District Court
700 Barclay Circle
Rochester Hills, MI 48307

Dated:
June 24, 2025